Pear Assessment (Edulastic)

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Product Privacy Policy
02. Privacy & Trust
03. Safety & Security
04. COPPA Disclosure & Consent Form
05. Data Processing Addendum
06. California Residents Notice
07. Product Terms
08. Website Terms

Competitor website

01 | Product Privacy Policy

https://www.peardeck.com/policies/privacy-policy-for-product-users

Webpage text snapshot | Retrieved 10 October 2026

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Pear Deck Learning Privacy Policy for Product Users

Last Updated Date: September 22, 2026

Introduction

Welcome! Liminex, Inc. doing business as GoGuardian and Pear Deck Learning and its family of company Affiliates, including Pear Deck, Inc. and Snapwiz Inc. (collectively, “Liminex”, “GoGuardian”, “we”, “us”, “our”) is an educational technology company that provides K-12 schools and school districts with digital learning tools designed to supercharge the learning potential of every student. The privacy of each and every user matters deeply to us, and we strive for transparency in all of our data privacy practices—especially when it comes to identifying the information that we collect, use, share, and disclose, as well as how we help keep your information safe. We take our responsibility to protect your information very seriously. Please remember that we are always here to answer any questions you have, and we look forward to working with you for years to come. Capitalized terms used herein that are not expressly defined are as defined in our Product Terms of Service and End User License Agreement (“EULA”).

This Product Privacy Policy (“Product Privacy Policy”) explains how we collect, use, share, disclose, and protect information collected from and about our School customers that are using our Offering(s) and such School’s Authorized School Personnel. Our Offerings include the following:

GoGuardian Offerings

GoGuardian Admin

GoGuardian Beacon

GoGuardian Director

GoGuardian DNS

GoGuardian Fleet

GoGuardian Teacher

GoGuardian Hall Pass

GoGuardian Discover

Pear Deck Learning Offerings

Pear Deck

Pear Assessment

Pear Practice

Pear Start

This Product Privacy Policy does not apply to:

visitors and users of our general audience Website and their information (please see our Privacy Policy for Website Visitors ("Website Privacy Policy")); or

organizations or third parties that we do not own or manage, or to individuals that we do not employ or manage. We encourage you to review the applicable third party privacy policies and terms of use before submitting any information through those sites or services.

Data submitted as a job applicant to Liminex and its Affiliates.

By using our Offerings, you, the school or school district (“School,” “you,” “your”), are declaring that you have read and understand this Product Privacy Policy. If you are acting on behalf of a School, you represent and warrant that you are at least eighteen (18) years old and have the authority, the right, and the capacity to legally bind the school and have read and understand this Product Privacy Policy. Our EULA and, as applicable to the extent your School is in the European Economic Area ("EEA"), our Data Protection Addendum ("DPA") also apply to how we treat your information.

1. Information Provided Directly to Us through our Offerings

The information that we collect depends on the Offerings and features within those Offerings that a School uses and is limited to information that is specifically required for the use of our Offerings. We collect some business information directly from a School (e.g., information collected when signing up to use our Offerings) or from Schools about their students or directly from the School’s students (e.g., browsing information) when we act as their service provider. We also collect some information automatically (e.g., Offerings usage information).

1.1 School and School Official Information

We collect the following information that we collectively label as “School Information”:

School Profile Information: When an official of a School ("School Official") initiates contact through our Website for the Offerings on behalf of his/her School, we collect that School Official’s contact information as well as information about his/her School relevant to purchasing and setting up our Offerings. This information includes the School Official's name, email address, and phone number, as well as the School’s name, address, billing address, number of devices, number of students, and network configuration. If the School Official creates an account for the Offerings, the School Official must also create a password.

Authorized School Personnel: In certain Offerings, following a School Official’s establishment of a School account, the School Official can use the Offerings to add additional School personnel such as other School Officials and teachers (together with the School Official, "Authorized School Personnel") from their School and designate their appropriate permission levels in the Offerings. The Authorized School Personnel may provide such person’s contact information such as email addresses and phone numbers. Certain Offerings require the School Official and/or their Authorized School Personnel to provide class enrollment information (e.g., class name and subject).

Support Requests: Authorized School Personnel can submit requests about the Offerings to our support center (e.g., our Unified Help Center) through both our Offerings themselves and from our Website. When Authorized School Personnel submit support requests through these support centers, we receive these requests and associated contact information.

Additional Information About Authorized School Personnel: Depending on the Offerings and features selected by a School, the Offerings can collect additional information about Authorized School Personnel, including chat messages and video conferencing between students and teachers (including if Authorized School Personnel participate in a chat function as part of a video conference), GoGuardian-generated unique account identifiers, and other relevant unique identifiers (e.g., Google Classroom identifiers if School integrates Google Classroom with GoGuardian Teacher). This information may change if a School and/or Authorized School Personnel utilize new features and/or Offerings. Students can only interact with Authorized School Personnel through the GoGuardian Offerings (via chats or video conferencing).

Application Usage and Business Information: Depending on the Offerings and features selected by a school, the Offerings can collect information regarding application usage and licenses.

1.2 Personal Student Information for All Offerings

When addressing a specific Offering in this Product Privacy Policy, we may refer to the name of the entity and the Personal Student Information (defined below) collected by such entity. Each school in the United States must comply with any legal requirements applicable to it, which may include, providing appropriate notice and/or obtaining parental consent. Schools located in countries outside of the United States must also obtain and provide appropriate consent from parents and/or guardians of students or as otherwise required by Applicable Law. We only collect Personal Student Information where Schools have provided consent required by Applicable Law, including the Children’s Online Privacy Protection Act (“COPPA”). The Personal Student Information collected may change if a School utilizes new features or Offerings.

1.3 COPPA Safe Harbor

Protecting children's and student's privacy is especially important to us. We participate in the iKeepSafe Safe Harbor program. We have been granted the iKeepSafe COPPA Safe Harbor seal signifying that GoGuardian's Website as well as the software that runs the Website and the GoGuardian Offerings (GoGuardian Admin, GoGuardian Teacher, GoGuardian Beacon, GoGuardian Fleet, and GoGuardian DNS) have been reviewed and approved for having policies and practices surrounding the collection, use, maintenance and disclosure of personal information from children consistent with the iKeepSafe COPPA Safe Harbor program guidelines. COPPA protects the online privacy of children under the age of 13; below is an email for iKeepSafe Safe Harbor program:

Email: privacy@ikeepsafe.org

1.4 GoGuardian Personal Student Information

This section applies to the GoGuardian Offerings only. In providing our GoGuardian Offerings to Schools, we collect information that may, alone or in combination with other available information, be reasonably used to identify a current or former student enrolled in a K-12 School ("Personal Student Information"). GoGuardian only collects Personal Student Information on school-managed devices and/or accounts where a School has already registered with GoGuardian and chosen to use GoGuardian Offerings and where such Schools have consented as set forth above. The Personal Student Information collected by our GoGuardian Offerings on behalf of a School depends on the particular GoGuardian Offerings and features selected by a School and the particular settings enabled or disabled by the School. Pursuant to such selections, the Personal Student Information that we may collect includes:

Student's School-Managed Account Information and Association Information: GoGuardian's Offerings collect a student's Google or Microsoft School-managed account information, including the student's name, email address, Google Profile ID and Google Image URL (for school-managed Google accounts), Microsoft Profile ID (for school-managed Microsoft accounts), organizational unit, and device identifiers necessary to associate a student with a certain device and settings. Additionally, GoGuardian Offerings may also need to associate a student with a particular teacher's classroom by using a Google classroom identifier or other identifier.

Activity Information: Depending on a School's currently-selected GoGuardian Offerings, features, integrations, and settings, GoGuardian may collect additional information from or about school-managed accounts, devices, applications, and online activity. This may include chats (e.g., within GoGuardian Teacher), video conferencing recordings (including audio and video of participating Students and chats from within a video conference), a student's browsing history, IP address, online content, email content, screenshots, and key percentage variance (but not the actual inputs or sequence of inputs; e.g., to identify patterns like gaming). Students may use chat and video conferencing features only to communicate with Authorized School Personnel. Our Offerings do not permit interactions with individuals outside of those designated as Authorized School Personnel.

Grade, Attendance, and Assignment Information: Depending on a School's currently-selected GoGuardian Offerings, features, integrations, and settings, GoGuardian may also receive grade, attendance, and assignment information.

Location Information: Using GoGuardian Admin, a School can collect the geographic location of devices for the purpose of locating and recovering its devices. While GoGuardian Offerings can collect IP addresses while GoGuardian Offerings are active, no precise geographic login locations of mobile phones can be accessed or stored by GoGuardian.

Integration Information: If your School chooses to integrate GoGuardian Offerings with other Integration Offerings (e.g., integrate with other School software with GoGuardian Offerings), then we will collect the information necessary to integrate and perform our Offerings, including unique identifiers (e.g., Google classroom identifier to connect a student to his/her classroom if your School integrates Google Classroom with GoGuardian Teacher) and other information (e.g., Parent/Guardian Information if your School integrates GoGuardian Offerings with the Parent/Guardian Information from Classlink or Clever).

1.5 Pear Deck Learning Personal Student Information

The Personal Student Information collected by our Pear Deck Learning Offerings on behalf of a School depends on the particular Pear Deck Learning Offerings and features selected by a School and the particular settings enabled or disabled by the School. Pursuant to such selections, the Personal Student Information that we may collect includes:

School-Managed Account and Association Information: We collect a student's name, email address, and account identifiers (e.g., Google ID or Microsoft ID), as well as information needed to associate the student with a device, account, class, teacher, or school. In Pear Deck and Pear Practice, students may join sessions in anonymous mode, in which case we do not collect their name or email address. Pear Assessment may additionally collect a student ID and Pear Assessment username.

Activity Information: We collect information about student activity within the Offerings, including responses to interactive features, assessment scores, and session URLs. Pear Assessment may collect audio recordings and images during assessments.

Device and Usage Information: Across all Offerings, we collect device and usage details such as IP address, device identifier, operating system, browser type, non-precise geographic location (e.g., city or zip code), technical information about system and app software, peripherals, and timestamps associated with logins and usage. Pear Assessment may also collect time on task (the length of time a student spends on a question), browser lock events, and user interaction data.

Integration Information: Where your School chooses to integrate our Offerings with other School-selected software, we collect the information necessary to support those integrations, including identifiers such as Google Classroom IDs or student information system ("SIS") data.

Demographic Information (Pear Assessment only): Pear Assessment may collect student demographic details, such as gender, date of birth, English language learner status, individualized education plan ("IEP") status, and free or reduced lunch status.

1.6 Parent/Guardian Information

If a School chooses to utilize one of our Offerings' guardian feature (such as to enable a School to send important automated notifications to a parent/guardian about his/her child for a GoGuardian Offering or to view assessment results in Pear Assessment), we will receive certain Parent/Guardian Information. Specifically, depending on the guardian feature, we may receive a parent's/guardian's name, email address, and a phone number from the School. To learn whether your child's School is using this guardian role or feature or how to update a child's legal parent/guardian contact information, please contact your child's School and follow the instructions below in the section below titled "Requests from Parents, Legal Guardians, Eligible Students, and Authorized School Personnel".

If you are a parent or guardian and utilize a guardian feature (including GoGuardian's Parent App and/or guardian feature in Pear Assessment), we collect: (1) your email address to confirm your authorization from the School to use the app, to determine the student associated with you and, once verified, enable the app; and (2) certain automatically-collected information about your app activity as set forth below.

2. Information We Automatically Collect through Our Offerings

Our Offerings automatically collect the following additional information that we label collectively as "School Log and Cookie Information":

Analytics Information and Event Information: Our Offerings automatically collect information through analytics services providers, including IP address, internet service provider ("ISP"), date and time stamp, browser language, browser type, amount of time spent on particular portions of our Offerings, and/or other general usage data. Similar to other software, we also collect event information regarding how users interact with our Offerings. For example, we collect information about how much time users spend on certain features of our Offerings.

Log Information: We also collect log information such as service diagnostics and technical logging information, which may include IP address, login times to our Offerings, usage times of our Offerings, browser type, and browser configuration.

Device Information: We collect information about the devices that log into our Offerings, including type of device, device settings, and operating system.

Cookies: We use Cookies (defined below) in our Offerings for the purposes described in the section below titled "Cookies Notice."

3. How We Use Information Collected Through Our Offerings

We use School Information and School Log and Cookie Information to:

set up and provide our Offerings;

analyze and improve our Offerings;

respond to a School's and/or Authorized School Personnel's requests and to provide related support;

administer and troubleshoot our Offerings;

send information to a School and Authorized School Personnel about how to use our Offerings and other important updates;

send email or text information or alerts as part of Offerings to a School and/or Authorized School Personnel;

notify a School and Authorized School Personnel about new features or Offerings that may be of interest to them, and, similarly notify other Authorized School Personnel of new features or Offerings that may be of interest to them when residents of the United States or otherwise as permitted by Applicable Law;

help prevent fraud and to enforce the legal terms that govern our Offerings;

to comply with Applicable Law and protect our and others' rights, safety and property;

follow further instructions of a School; and

to determine general, non-identifying demographics such as location (down to the city level), age range (e.g., 25-35), and equipment profiles (e.g., Chromebook with medium-size screen).

We do not sell School Information and School Log and Cookie Information or share it for cross-context behavioral advertising (and have not done so in the past 12 months). No advertisements of any kind are shown in any Offerings. Furthermore, third-party advertising services do not collect any Personal Student Information through our Offerings. If School or Authorized School Personnel opt in to receive text messages for certain alerts (e.g., via GoGuardian Beacon), text messaging originator opt-in data and consent information will not be shared with any third parties, other than third parties supporting our Offerings. School Information or Personal Student Information are not displayed publicly in any way.

In accordance with our contractual obligations, we use Personal Student Information and Parent/Guardian Information to:

Provide, improve and analyze our Offerings and for legitimate educational purposes of the School;

to send parents and guardians alerts and notices in the Parent App or otherwise provide information to parents and guardians consistent with the guardian feature;

enforce the legal terms that govern our Offerings;

comply with Applicable Law and protect our and others' rights, safety and property; and

follow further instructions of a School.

At all times, Personal Student Information is the property of and under the control of a School or, as required by Applicable Law, the applicable eligible student, parent, or guardian.

We do not sell Personal Student Information. We do not use Personal Student Information to target advertisements or market to students or anyone else, to amass a profile about a K-12 educational student for a non-educational purpose, or for any purposes prohibited by the Family Educational and Privacy Rights Act (20 U.S.C. § 1232g; 34 CFR Part 99.3) ("FERPA"), California Business & Professions Code section 22584 (“SOPIPA”), and California Education Code section 49073.1. We do not share Personal Student Information with third-party service providers for training of their artificial intelligence models for their own purposes. We will not use Personal Student Information for any purpose other than those required or specifically set forth in this Product Privacy Policy, our EULA, DPA, or any other agreement between a School and Liminex.

We will also use your Personal Student Information in accordance with applicable student privacy laws, including, as applicable, Connecticut's "Act Concerning Student Privacy" (Connecticut General Statutes § 10-234aa et seq.).

If you are located in the EEA or the United Kingdom ("UK"), please see the section below titled “Notice to EEA and Other Non-US Residents” for more information about how we use information and the legal bases for collecting information.

4. How We Disclose Information Collected Through Our Offerings

We may disclose information that we collect in the following ways:

Affiliates: We provide access to or share your information with current or future family of Liminex companies, including our Affiliates such as Pear Deck Inc., and Snapwiz Inc.

Authorized School Personnel Access: Each School determines which Authorized School Personnel have access to the School’s account with Offerings and their permission levels.

Third Parties Supporting Our Offerings: We may share information with our service providers that assist us in performing business-related functions that support our Offerings. Information about third party service providers utilized by GoGuardian Offerings is available here and Pear Deck Learning Offerings is available here. We do not sell or rent Personal Student Information collected through our Offerings to third parties. When we employ another company to perform a function of this nature, we provide them with the information that they need to perform their specific function and impose contractual limits on how such third parties can use such information. For example, we use hosting services (e.g., Google Cloud Platform) and customer service tools to help support our Offerings. Regarding the Google Workspace API, we do not use this API to develop, improve, or train generalized artificial intelligence and/or machine learning models. We prohibit third parties from using Personal Student Information to create an automated profile, engage in data enhancement, conduct social advertising, or target advertising to students, parents, teachers, or the school.

With School Permission or at School Direction: We may disclose information, including Personal Student Information, to third parties pursuant to a School’s instruction or with a School’s permission. For example, if a School chooses to integrate our Offerings with another third party company’s products or services, then we will share information as instructed. With your permission, we may also share or disclose your name and other content through a testimonial video or quotation.

Protection of Liminex and Others: We may disclose certain information if we believe in good faith that doing so is necessary or appropriate to (i) protect or defend the rights, safety, or property of Liminex or third parties, including to defend or enforce our Product Privacy Policy, EULA, or any other contractual arrangement; or (ii) to respond to claims that content violates the rights of third parties.

Legal Requirements: We may disclose certain information if we believe in good faith that doing so is necessary or appropriate to comply with any law enforcement, legal, or regulatory process, such as to respond to a warrant, subpoena, court order, or other Applicable Laws and regulations.

Business Transfer: We may disclose certain information in connection with or during negotiations of any merger, sale of company assets, financing, or acquisition of all or a portion of our business to another company. If such transfer is subject to additional mandatory restrictions under Applicable Laws, we will comply with such restrictions. The successor entity will be subject to all Applicable Laws, including student privacy laws. In connection with such a transaction, we will also work to ensure that the successor entity has a commitment to student privacy.

De-Identified Information: We may use, share, or disclose De-Identified Information for various purposes such as product development, research, and marketing, in compliance with Applicable Law. For example, we may use aggregate, anonymous data to publish an e-book on Schools’ most utilized online educational resources.

If you are a School or other Authorized School Personnel in the EEA or the UK, please see the section titled “Notice to EEA and Other Non-US Residents” below.

5. How Long We Keep Information

We retain Personal Student Information as directed by the School:

School’s Request for Deletion or Transfer of Personal Student Information: We act upon a School’s documented instructions to delete Personal Student Information during and after all School licenses to the Offerings have expired, unless we are required to retain such information to comply with our legal obligations with law enforcement, resolve disputes, or enforce our agreements. Upon instruction to delete Personal Student Information, we will take reasonable efforts to delete and/or de-identify such information in a commercially reasonable amount of time under Applicable Laws.

At the termination of all of the School's licenses with us, we and the School may agree to transfer the School's Personal Student Information back to the School. In that case, similar to deletion requests, we will act upon a School's documented instruction to transfer the School's Personal Student Information to the School and take reasonable efforts to transfer such information in a commercially reasonable amount of time under Applicable Laws, unless we are required to retain such information to comply with our legal obligations, or with law enforcement, resolve disputes, or enforce our agreements. For Schools in the EEA, Personal Student Information will be deleted and transferred/ported according to the terms of the DPA or other agreement between the School and us.

Video Conferencing Recordings: If a School enables the video conferencing feature in GoGuardian Teacher, audio and video recordings will be stored by GoGuardian for ninety (90) days.

Email Messages: If a School enables an email API feature in GoGuardian Beacon, email messages that do not generate a Beacon alert will be stored by GoGuardian for no more than sixty (60) days.

Deactivated Accounts: We may consider a School's account to be terminated 365 days after all of a School's licenses expire without use, reactivation, or renewal by the School. At that time, if a School has not requested deletion of Personal Student Information, we will automatically de-identify and/or delete the School's Personal Student Information within a commercially reasonable period of time as long as that information is not necessary to comply with our legal obligations, resolve disputes, or enforce our agreements. All Personal Student Information retained will remain subject to our Product Privacy Policy that was in effect at that time — even after the deactivation of an account or termination of a contract.

We generally retain information other than Personal Student Information for as long as it may be relevant to the purposes above or as required or permitted by Applicable Law. We consider the nature and sensitivity of the information, the purposes for which we process the information, applicable legal requirements, and our legitimate interests in determining how long to retain such information. The purposes for which we use such information may dictate different retention periods for the same types of information. To dispose of any personal information, we may anonymize it, delete it or take other appropriate de-identifying steps. Please note that information may persist in copies made for backup and business continuity purposes for an additional period of time.

6. Your Rights and Choices About Information Collected Through Our Offerings

You have certain rights and choices with respect to your information as further described in this section.

Your choices about School Profile Information and School Log and Cookie Information:

Promotional Communications: You can decline promotional communications at the point information is requested for such purpose (e.g., by checking the relevant box) or, by following the unsubscribe instructions on communications sent to you. You can also contact us as described in the section titled "How to Contact Us" below.

Cookies and Analytics. You can opt out from certain cookie-related and analytics processing by following the instructions in the section titled "Cookie Notice" below.

Privacy rights related to School Profile Information and School Log and Cookie Information:

Residents of certain jurisdictions have rights with respect to personal information, but, except as set forth below, these rights do not apply to business to business information (e.g., business contact, contract and business communications) or personal information collected by Liminex when Liminex is acting as a service provider of a School (though we assist Schools in fulfilling requests that they receive). You can read more about any such applicable rights at our Website Privacy Policy.

If you are acting on behalf of your School and would like to submit a data request, please follow the instructions described in the section titled "School's Request for Deletion or Transfer of Personal Student Information" above. Similarly, if you are a parent, guardian, eligible student, or Authorized Personnel and would like to submit a data request to us, please follow the instructions described in the section titled "Requests from Parents, Legal Guardians, Eligible Students, and Authorized School Personnel" below.

With respect to School Profile Information and School Log and Cookie Information, residents of the EEA, UK, Switzerland, and California may request that we:

(1) provide access to and/or a copy of such information; (2) prevent the processing of that individual's information for direct-marketing purposes (including any direct marketing processing based on profiling); (3) update an individual's

information which is out of date or incorrect; (4) delete certain information that we are holding about an individual; and (5) restrict the way that we process and disclose certain of the individual's information.

To exercise any of these rights, please contact us at privacy@goguardian.com. Authorized agents for California residents may submit requests at: https://www.goguardian.com/policies/ccpa-requests. In addition, you may have the right to lodge a complaint with the relevant supervisory authority in certain circumstances. However, we encourage the individual to contact us first, and we will do our very best to resolve the individual's concern.

We will consider all requests and provide our response within the time period stated by Applicable Law. Please note, however, that certain information may be exempt from such requests in some circumstances, which may include if we need to continue processing an individual's information for our legitimate interests or to comply with a legal obligation. We may request that an individual and/or School provide us with information necessary to confirm the individual's identity before responding to your request.

In addition, California residents may annually request a list of the third parties to which a company discloses "personal information" for such third parties' marketing purposes and the types of information disclosed. However, we do not disclose personal information to third parties for such third parties' direct marketing purposes.

Your choices about School Information (Except School Profile Information), Personal Student Information, and Parent/Guardian Information:

Cooperation with Schools. We will assist the School in facilitating requests relating to Authorized School Personnel Information and Personal Student Information pursuant to the School's instruction as explained further in the sections titled "How Long We Keep Information" or in the "Your Rights and Choices About Information Collected Through Our Offerings" above.

Requests from Parents, Legal Guardians, Eligible Students, and Authorized School Personnel:

Review, Correction, and Deletion Requests.

If a parent, legal guardian, eligible student, or Authorized School Personnel wishes to request a review, correction, or deletion of Personal Student Information or School Information, he/she should contact the appropriate School Official of his/her or his/her child's School. We will cooperate with the School to fulfill requests pursuant to the School's verification and instruction within a commercially reasonable amount of time and in compliance with Applicable Law.

If you are a user of the Parent App, you can review information about the choices you may have with respect to the personal information you provide through the Parent App in the "Your Rights and Choices" section of our Website Privacy Policy.

If you are Authorized School Personnel, please note that we may be required to maintain certain School Information if directed to do so by your School Official on behalf of your School employer or as needed by us to enforce our legal rights.

Transfer Requests. Our Offerings allow Authorized School Personnel to download information on behalf of a parent, legal guardian, eligible student, or Authorized School Personnel. If our Offerings do not cover the scope of the transfer request, we will, in compliance with Applicable Law and following documented instructions from the School, honor the requests from the parent, legal guardian, eligible student, or Authorized School Personnel for the transfer of Personal Student Information or personal data of the Authorized School Personnel by utilizing the same guidelines as described above in the section titled "Review, Correction, and Deletion Requests".

Transfer Requests for Student-Generated Content. California law requires website operators to transfer student-generated content to the student's personal account when requested by an eligible student, parent, or guardian. The Offerings are not used as the primary platform for students to submit their own content. To the extent that students in California, or in other states with similar transfer laws, submit their content on the Offerings, the appropriate parent, guardian, or eligible student may submit a request to privacy@goguardian.com to transfer this information to him/her. Following verification of the requestor's authorization to receive the information (which may require verification by the requestor's School), we will provide the student-generated content that we have in a commercially reasonable amount of time in either a CSV or other mutually-agreeable format. Please note that we cannot guarantee retention of student-generated content.

7. How We Protect Your Information

We take the security and privacy of your School's data very seriously. For these reasons, we have implemented various technical, administrative, and physical safeguards to protect your information, including, but not limited to, specific training of our personnel authorized to access Personal Student Information and other information and data encryption in transit and at rest. These safeguards vary depending on the sensitivity of the information at issue.

We are committed to preventing unauthorized access to our systems and data, and will investigate any possible occurrence. In the event of a breach of Personal Student Information, we will comply with all relevant breach laws to assist the School or provide notification as required to you, a School, affected parents, legal guardians, eligible students, and regulators.

7.1 Additional Information for California Residents

If you are a California resident, California law requires us to provide you with some additional information.

We collect the following categories of personal information: identifiers (such as name and email address); internet or other network information (how users interact with our Offerings); and other information that identifies or can be reasonably associated with you (such as your correspondence with us). We also collect information at the direction of Schools including education information, location information (about devices), and audio and visual information.

We use such information to:

set up and provide our Offerings;

analyze and improve our Offerings;

respond to a School's and/or Authorized School Personnel's requests and to provide related support;

administer and troubleshoot our Offerings;

send information to a School and Authorized School Personnel about how to use our Offerings and other important updates;

notify a School and/or Authorized School Personnel about new features or Offerings that may be of interest to them as permitted by Applicable Law;

help prevent fraud and to enforce the legal terms that govern our Offerings;

comply with Applicable Law and protect our and others' rights, safety and property; and

follow further instructions of a School

We retain such information as long as it is necessary to fulfill the purposes for which we collect it, unless a longer retention is required or permitted by Applicable Law. We consider the nature and sensitivity of the information, the purposes for which we process the information, applicable legal requirements, and our legitimate interests in determining how long to retain information.

8. Notice to EEA and Other Non-U.S. Residents

European Union ("EU") data protection laws make a distinction between organizations that process personal data for their own purposes (known as "data controllers") and organizations that process personal data on behalf of other organizations (known as "data processors"). Depending on the particular circumstance, we and your School may act either as a data controller or a data processor of your personal data. The laws in some jurisdictions like the EU also require data controllers to share the legal ground that they rely upon to use or disclose personal information.

8.1 Liminex as a Data Controller vs. Data Processor

Liminex is considered the "processor" of School Information (except for School Profile Information), Personal Student Information and Parent/Guardian Information. We collect, use, share and disclose this information as a processor on behalf of and at the instruction of the School controller, pursuant to our EULA and, if applicable, DPA. If you have a question or complaint about how your personal data is handled, please contact your School.

We are considered the "controller" of School Profile Information and School Log and Cookie Information. As the data controller, we collect, use, share, and disclose this information as described in this Product Privacy Policy. We retain the

personal data contained in this information for as long as necessary to provide you with the Offerings or for other important purposes such as complying with legal obligations, resolving disputes, and enforcing our agreements.

Our legal grounds for using School Profile Information and School Log and Cookie Information are as follows:

Contractual Commitments: We use, share, and disclose information to honor our contractual commitments to a School.

Legal Compliance: We need to use, share, and disclose information in certain ways to comply with our legal obligations.

With Your Consent: Where required by Applicable Law, and in some other cases, we use, share, or disclose information on the basis of consent.

Legitimate Interests: In many cases, we use, share, or disclose information on the ground that it furthers our legitimate business interests in ways that are not overridden by the interests or fundamental rights and freedoms of the affected individuals, such as customer service, analyzing and improving our business, promotional activities, providing security for our Offerings, preventing fraud, and managing legal issues.

8.2 Information Transfer To The United States

If you are located outside of the United States, please be aware that any information that you provide to us will be processed outside your jurisdiction. The recipients of information described in the relevant portions of the section titled “How We Disclose Information Collected Through Our Offerings” above may be located in the United States. This information may be subject to United States law, including laws that may require disclosure of personal information to government authorities. Schools may export Personal Data (defined below) to jurisdictions outside the European Economic Area (“EEA”) on the basis of legal mechanisms approved by the European Commission and other relevant authorities for cross-border data transfers, such as Standard Contractual Clauses.

The European Union-United States Data Privacy Framework, UK Extension to the European Union-United States Data Privacy Framework, and Swiss-United States Data Privacy Framework: We comply with the European Union-United States Data Privacy Framework, the UK Extension to the European Union-United States Data Privacy Framework, and the Swiss-United States Data Privacy Framework (collectively, the “Framework” and their principles, the “Framework Principles”) as set forth by the United States (“U.S.”) Department of Commerce regarding the collection, use, and retention of “personal data” (as defined under the Framework Principles, “Personal Data”) from applicable EEA countries, the UK, and Switzerland, respectively. We have certified that we adhere to the Framework Principles with respect to Personal Data transferred under the Framework. To the extent there is any conflict between the terms in this Product Privacy Policy and the Framework Principles, the Framework Principles shall govern. To learn more about the Framework and view our certification, visit the U.S. Department of Commerce’s Framework list by clicking here. We may also protect Personal Data through other legally valid methods, including international and data transfer agreements.

As required under the Framework principles, when we receive Personal Data under the Framework and then transfer it to a third-party service provider acting as an agent on our behalf, we have certain liability under the Framework if both (i) the agent processes the information in a manner inconsistent with the Framework; and (ii) we are responsible for the event giving rise to the damage.

Choices of International Users: Some international users (including those whose information we collect under the Framework) of Offerings have certain legal rights to access certain information that we hold about them and to request its deletion. Please see the section titled “Your Rights and Choices About Information Collected Through Our Offerings” above for more information.

8.3 How to Contact Us and Dispute Resolution

How to Contact Us for Non-U.S. Residents: Individuals located outside the United States who have questions or concerns regarding our Product Privacy Policy or practices may direct a complaint in writing to Liminex, Inc., 8605 Santa Monica Blvd., #996559, West Hollywood, CA, 90069-4109, Attn: General Counsel or to privacy@goguardian.com. Within a reasonable time of receiving the written complaint, we will review and address the complaint, as appropriate, and inform the individual of the results of such review and any steps taken to address the complaint.

Dispute Resolution for EEA, UK, and Swiss Residents: If you are a resident of the EU, UK, or Switzerland whose personal data is subject to the Framework, and you are dissatisfied with the manner in which we have addressed your concerns or we fail to respond to you within 45 days of your complaint, you may seek further assistance, at no cost to you, from our designated Framework independent recourse mechanism, the JAMS Data Privacy Framework Program,

which you can learn more about by visiting https://www.jamsadr.com/DPF-Dispute-Resolution. Residents of the EU, UK, or Switzerland whose personal data is subject to the Framework may, in certain circumstances, elect to arbitrate unresolved complaints by invoking binding arbitration pursuant to the Framework's Recourse, Enforcement and Liability Principle and Annex I of the Framework (see here) but prior to initiating such arbitration, you must: (1) afford us the opportunity to resolve the issue; (2) seek assistance via our recourse mechanism above; and (3) contact the U.S. Department of Commerce (either directly or through the relevant Data Protection Authority) and afford the U.S. Department of Commerce time to attempt to resolve the issue. Each party shall be responsible for its own attorney's fees. Please be advised that, pursuant to the Framework, the arbitrator(s) may only impose individual-specific, non-monetary, equitable relief necessary to remedy any violation of the Framework Principles with respect to the individual. We are subject to the investigatory and enforcement powers of the U.S. Federal Trade Commission.

For Australian residents: If you are located in Australia, and are dissatisfied with the way we have handled a privacy issue, you may contact the Office of the Australian Information Commissioner for more information.

For Singapore residents: If you are located in Singapore, and are dissatisfied with the way we have handled a privacy issue, you may contact the Personal Data Protection Commission for more information.

9. Cookies Notice

9.1 What are cookies?

"Cookies" are small text files stored on your computer that allow us to understand usage of Offerings. Cookies include cookies, internet server logs, tags, Software Development Kit/SDKs, tracking pixels, and other similar tracking technologies. A number of Cookies that we use last only for the duration of your session, expiring when your session ends (so-called "session cookies"). Other Cookies are used to help our systems recognize you if you return to Offerings and will thus be retained longer (so-called "persistent cookies"). Some of the Cookies used on our Offerings are set by us, and some are set by third parties that are delivering services on our behalf.

9.2 What types of Cookies do we use and what data do they collect?

We use Cookies in the Offerings that automatically collect information to:

understand usage of the Offerings and to improve these Offerings;

authenticate your account; and

remember your settings and account information.

We do not use any advertising Cookies in our Offerings and we do not place advertisements in the Offerings.

9.3 What are my choices about Cookies?

You can learn more about how Cookies work and how to turn them off in your particular browsers. Please remember that if you replace, change or upgrade your browser, or delete your Cookies, you may need to use these opt-out tools again.

For information about Cookies used by the developers of these browsers, please visit:

Internet Explorer

Google Chrome

Internet Explorer 9

Mozilla Firefox

Safari (Desktop)

Safari (Mobile)

Android Browser

For controls specific to advertising and analytics services offered by Google, click here from each of your browsers.

Note About Do Not Track: Do Not Track ("DNT"): is a privacy preference that users can set in certain web browsers to inform websites and services that they do not want certain information about their webpage visits collected over time and across websites or online services. Some browsers do not recognize DNT settings. At this time, we do not recognize or

respond to browser-initiated DNT signals because we do not track you across websites.

10. Changes to this Product Privacy Policy

We reserve the right to make changes to this Product Privacy Policy from time to time, including to reflect changes in the law, our data collection and use practices, and the features of the Offerings. At the top of this Product Privacy Policy, we will indicate the date of the most recent update to this Product Privacy Policy. We will notify your School of material changes to the Product Privacy Policy on our Website, and make additional efforts to notify your School of material changes that impact the treatment of data collected via the Offerings, including via email. We will also obtain your School's consent before any material changes to our Product Privacy Policy apply to your School where required by Applicable Law.

11. How to Contact Us

If you have questions or concerns, the best way to reach us is by emailing privacy@goguardian.com. You can also reach us by calling 888-310-0410 or by writing to Liminex, Inc., 8605 Santa Monica Blvd., #996559, West Hollywood, CA, 90069-4109.

Additionally, please feel free to consult additional resources such as the ones listed below.

Student Privacy Resource List:

Student Privacy Compass

Department of Education's Privacy Technology Assistance Center ("PTAC")

The Federal Trade Commission's Complying with COPPA: Frequently Asked Questions

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Professional Services Addendum

Website Terms of Service

We help teachers deliver powerful learning moments to every student, every day.

Join our newsletter

We'll send you a nice letter every two weeks. No spam.

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California Residents Notice

Your Privacy Rights

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02 | Privacy & Trust

https://www.peardeck.com/privacy

Webpage text snapshot | Retrieved 10 October 2026

Privacy, trust, and responsible AI

Our commitment to you

As the industry leader in student data privacy and responsible AI, we know how much trust schools place in Pear Deck Learning solutions. Discover how we earn — and keep — the respect of schools and educators alike.

Student Data Privacy

Responsible AI principles

How does Pear Deck Learning protect student data?

As a recognized leader in student data privacy, we have a dedicated privacy team that works across all divisions of the company to implement proactive privacy protections.

We're proactive about protecting student information.

Pear Deck Learning does not sell, trade, or rent student personal information.

We are FERPA compliant, meaning that schools always maintain certain rights over their student data.

We ensure schools maintain control over their data.

Schools and districts that partner with Pear Deck Learning own and control their Personal Student Information, and can request deletion of Personal Student Information at any time.

Pear Deck Learning does not use Personal Student Information beyond the purposes explicitly outlined in agreements.

We follow industry best practices to safeguard data.

We apply a combination of technical, administrative, and physical safeguards to protect student and school data.

We use military-grade TLS encryption across our products and websites to protect personal information in transit.

We restrict access to Personal Student Information on a "need-to-know" basis.

We continuously test and assess to improve privacy practices.

We constantly monitor state and federal laws to ensure our policies meet — and often exceed — legal requirements.

We collaborate with experts and advocates to thoroughly examine industry-leading privacy topics.

Industry-leading AI you can trust

As leaders in creating responsible AI-powered solutions for schools, we're dedicated to the students, teachers, and districts who entrust us with their digital learning experiences.

Purpose driven

Our AI-powered educational tools are designed with a clear purpose. We enhance personalized learning experiences that empower all students to reach their full potential. We ensure that our AI systems are thoughtfully aligned with educational objectives and educators' needs while prioritizing student success and well-being.

Privacy focused

Our AI-powered education tools are built with privacy-by-design principles.We integrate privacy and data protection considerations into every stage of AI development and deployment. We use comprehensive anonymization techniques, data minimization practices, and secure data storage and processing methods to protect student data and privacy.

Effective

Our AI-powered education tools are developed with efficacy at their core. We support teachers in delivering engaging and differentiated instruction and help boost student outcomes across the learning journey. We strive to meet the evolving needs of all learners by combining real-time data, educator feedback, technical expertise, and insights from our team of learning experts.

Explainable

Our AI-powered educational tools are deployed with intentional transparency. We explain how our AI-powered tools work and the data they process. We aim to build trust in our AI by providing clear and accessible explanations to students, parents, and educators about how AI works to improve the educational experience.

Equitable

Our AI-powered educational tools are reviewed for potential biases. We examine our tools for potential bias to uphold our commitment to advancing inclusivity, diversity, and equity in outcomes for all students. We consider all stages of the AI development cycle in order to mitigate bias across multiple dimensions of difference.

Reliable

Our AI-powered education tools are monitored for consistent and predictable behavior. We establish standardized metrics that enable us to compare and evaluate the performance of our AI models. We continuously track system performance and collect feedback from users, allowing us to make timely adjustments to our models.

Accountable

Our accountability is modeled after the National Institute for Science and Technology (NIST) framework for AI risk management. We intentionally map our AI systems, measure their impact, and manage potential risks through a comprehensive and cross-functional AI governance process.

Certifications & Partnerships

Pear Deck Learning products are 1EdTech TrustEd Apps certified.

Certifications & Partnerships

Proud members of the EDSAFE AI Industry Council and the SIIA AI in Education Industry Committee.

More about our approach to student privacy

WE DO process student data only if explicitly stated under contract with schools to perform specific educational functions.

WE DO affirm that schools maintain certain rights over their students’ data.

WE DO comply with all federal and state student privacy laws.

WE DO de-identify Personal Student Information for product development.

WE DO maintain administrative, technical, and physical safeguards to protect Personal Student Information.

WE DO train all employees who need to access Personal Student Information to perform their job functions effectively and with great respect to privacy.

WE DO use security technologies such as HTTPS and TLS-encryption across our products and services.

WE DO align with the NIST Cyber Security Framework.

WE DO NOT use Personal Student Information to market or advertise to students, parents, or anyone else.

WE DO NOT sell, trade, or rent Personal Student Information under any circumstances.

Have any additional privacy questions?

Our privacy & trust team is dedicated to providing industry-leading service and practices to protect student and school data privacy. If you have any specific questions, please email privacy@goguardian.com — we’re happy to answer them for you.

03 | Safety & Security

https://www.goguardian.com/safety-security

Webpage text snapshot | Retrieved 10 October 2026

Safety and Security

Protecting students online, in school, and everywhere in between.

GoGuardian offers an integrated suite of solutions designed to safeguard students from digital threats, support their mental well-being, and enhance physical campus security. Empower your district with proactive tools that foster a safer learning environment.

Connect with sales

Connect with sales

Digital Safety

Intelligent filtering & oversight for every device.

GoGuardian Admin delivers an advanced, AI-powered content filter that unifies student safety, helps ensure compliance, and keeps learning focused across all devices.

AI-powered threat defense

Proactively blocks new and uncategorized sites while automatically detecting and shutting down proxy bypass attempts.

Universal device coverage

Helps support CIPA-compliant filtering and policy enforcement across ChromeOS, Windows, macOS, and iOS devices.

Consistent policy enforcement

Maintains consistent policies and protection when students take their devices home, guaranteeing always-on digital safety.

Connect with sales

Connect with sales

Mental Health

Proactive detection & response for student well-being.

GoGuardian Beacon delivers an essential, AI-driven safety net that oversees online activity for signs of crisis, ensuring your safety team can intervene early and effectively.

AI-driven risk identification

Proactively identifies online activity signaling self-harm, suicide, or violence across search, email, and documents with high accuracy.

Contextual alerting

Provides full context on student activity, including search terms and source, so responders can act quickly and with confidence.

24/7 human review

Critical alerts for active planning are reviewed around the clock by trained safety specialists to ensure immediate triage and notification.

Connect with sales

Connect with sales

Physical Safety

Enhanced campus security & incident management

GoGuardian Hall Pass provides a clear view of who’s in class and who’s in the halls to streamline campus flow, reduce class disruption, and dramatically enhance accountability and security.

Reduce disruptions

Empower teachers to issue digital passes quickly and gain administrative insights into student roaming patterns for proactive behavioral intervention.

Encourage student accountability

Oversee who is inside or outside the classroom to combat truancy and unauthorized roaming.

Emergency readiness

Quickly identify missing students or students in hallways during drills or actual emergencies for faster, more accurate response.

Connect with sales

Connect with sales

Better Together

Safety without silos

True student safety requires a holistic approach. GoGuardian seamlessly integrates digital protection, mental health intervention, and physical security into one unified ecosystem.

Reduced administrative burden

Eliminate the need to manage multiple vendor contracts, separate dashboards, and disparate data sources.

Effective student support

Connect proactive risk identification (Beacon) with policy enforcement (Admin) and physical accountability (Hall Pass) for truly comprehensive protection.

Centralized data

All safety information is in one place, providing full context for faster, smarter interventions.

Connect with sales

Connect with sales

04 | COPPA Disclosure & Consent Form

https://www.peardeck.com/policies/coppa-disclosure

Webpage text snapshot | Retrieved 10 October 2026

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COPPA Disclosure & Consent Form

Last Updated: August 30, 2024

Introduction

Because your School is utilizing GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings, and/or Pear Deck Tutor Offerings, Liminex, Inc. dba GoGuardian and Pear Deck Learning, on behalf of itself and its Affiliates (together, “Liminex”, “we”, “us”, “our”), is providing you with information about how we collect and use the personally identifiable information of students under thirteen (13) years of age, as set forth in the Children’s Online Privacy Protection Act (“Disclosure”). We are providing this Disclosure to you as an official authorized to act on behalf of your School.

GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and Pear Deck Tutor will not knowingly collect, use, or disclose any Personal Student Information without a School’s verifiable consent or in accordance with applicable school policy. Our Product Privacy Policy (“Product Privacy Policy”) provides more details about our data practices. If there is a conflict between the Product Privacy Policy and this Disclosure, the terms of this Disclosure shall take precedence. Capitalized Terms not defined herein shall be ascribed the same meaning as in our Product Privacy Policy or End User License Agreement / Terms of Service (“EULA”).

1. Collection of Personal Student Information

GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and/or Pear Deck Tutor may collect Personal Student Information when a user is logged onto your school-managed accounts and devices provided by your School, a parent/guardian, or a student for your School’s educational purposes. More specifically, GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and Pear Deck Tutor collect the following Personal Student Information:

GoGuardian Personal Student Information

Pear Deck Personal Student Information

Pear Assessment Personal Student Information

Pear Practice Personal Student Information

Pear Deck Tutor Personal Student Information

1.1 GoGuardian

Student’s School-Managed Account Information and Association Information: GoGuardian’s Offerings collect students’ Google or Microsoft School-managed account information: student name, email address, Google Profile ID and Google Image URL (for school-managed Google accounts), Microsoft Profile ID (for school-managed Microsoft accounts), and organizational unit as well as device identifiers necessary to associate a student with a certain device and settings. Additionally, GoGuardian Offerings may also need to associate a student with a particular teacher’s classroom by using a Google classroom identifier or other identifier.

Activity Information: Depending on a School’s currently selected GoGuardian Offerings, features, integrations and settings, GoGuardian may collect additional information from or about school-managed accounts or devices and online activity, including chats (within GoGuardian Teacher), video conferencing recordings (including audio and videos of participating Students and chats included in a video conference) (within GoGuardian Teacher), a student’s browsing history, IP address, online content, email content (if a School has enabled Gmail API for GoGuardian Beacon), screenshots, and key percentage variance (but not the actual inputs or sequence of inputs).

Grade, Attendance, and Assignment Information: Depending on a School’s currently selected GoGuardian Offerings, features, integrations, and settings, GoGuardian may also receive grade, attendance, and assignment information.

Location Information: Using GoGuardian Admin, a School can collect the geographic location of devices for the purpose of locating and recovering its devices. GoGuardian Offerings can collect IP addresses while GoGuardian Offerings are active, no precise geographic login locations of mobile phones can be accessed or stored by GoGuardian.

Integration Information: If your School chooses to integrate GoGuardian Offerings with other Integration Offerings (e.g., integrate with other School software with GoGuardian Offerings), then we will collect the information necessary to integrate and perform our Offerings, including unique identifiers (e.g., Google classroom identifier to connect a student to his/her classroom if your School integrates Google Classroom with GoGuardian Teacher) and other information (e.g., Parent/Guardian Information if your School integrates GoGuardian Offerings with the Parent/Guardian Information from Classlink or Clever).

Please note that the information collected may change if your School starts utilizing new features and GoGuardian Offerings.

1.2 Pear Deck

Student's School-Managed Account Information and Association Information: For students who log into Pear Deck with a School-Managed Account, we collect student name, email address, the school-managed account ID (for example the Google ID or Microsoft ID), as well as identifiers and associated information necessary to associate a student with a certain device, account, presentation, teacher, and/or school. When a student joins a session with a code in anonymous mode, we do not collect student name or email address to join such session.

Activity Information: We collect additional information about the student's activity within a presentation, including engagement with and any student content generated in the session. This may include free text, multiple choice answers, drawings, or URLs.

Device and Usage Information: We collect general device and usage information such as IP address, device identifier, operating system, browser type, non-precise geographic location (e.g. zip code and city), technical information about your device, system and app software, and peripherals, and date and time stamps associated with login.

Integration Information: If your School chooses to integrate Pear Deck Offerings with other Integration Offerings (e.g., integrate with other School software with Pear Deck), then we will collect the information necessary to integrate and perform our Offerings, including unique identifiers (e.g., Google classroom identifier to connect a student to his/her classroom if your School integrates Google Classroom with Pear Deck).

1.3 Pear Assessment

Student's School-Managed Account Information and Association Information: The Pear Assessment Offerings may collect a student's name, email address, student ID, and Pear Assessment user name.

Activity Information: We may collect additional information, from or about any activity when a user is logged on, including audio recordings and images in an assessment.

Demographic Information: We may collect student demographic information, including gender, date of birth, English language learner status, individualized education plan status, and free and reduced lunch status).

Assessment Information: We collect student assessment responses, student assessment scores, and teacher feedback.

Device and Usage Information: We collect general device and usage information such as IP address, browser type, time on task (the length of time a student spends on a question), browser lock (if students try to leave a browser), and user interaction.

Integration Information: If your School chooses to integrate Pear Assessment Offerings with other Integration Offerings (e.g., integrate with other School software with Pear Assessment Offerings), we will collect the information necessary to facilitate such integration, including unique identifiers (e.g., SIS data for enterprise integration).

1.4 Pear Practice

Student's School-Managed Account Information and Association Information: For students who log into Pear Practice with a School-Managed Account, we collect student's name, email address, avatar image(s), the School-managed account ID (for example the Google ID or Microsoft ID), as well as identifiers and associated information necessary to associate a student with a certain device, account, session, teacher and/or school. When a student joins a session with a code in anonymous mode, we do not collect student name or email address to join such session.

Activity Information: We collect additional information about the student's activity within a session, including engagement with and any student content generated in the session. This may include free text, multiple choice answers, drawings, or session URLs.

Device and Usage Information: We collect general device and usage information such as IP address, device identifier, operating system, browser type, non-precise geographic location (e.g. zip code and city), technical information about your device, system and app software, and peripherals, and date and time stamps associated with login.

Integration Information: If your School chooses to integrate Pear Practice Offerings with other Integration Offerings (e.g., integrate with other School software with Pear Practice), then we will collect the information necessary to integrate and perform our Offerings, including unique identifiers (e.g., Google classroom identifier to connect a student to his/her classroom if your School integrates Google Classroom with Pear Practice).

1.5 Pear Deck Tutor

Student's School-Managed Account Information and Association Information: Pear Deck Tutor's Offerings collect a students' full name, email address and password. Additionally, Pear Deck Tutor offerings may also need to associate a student with a particular teacher's classroom by using a Google classroom identifier or other identifier.

Activity Information: Pear Deck Tutor may collect additional information, from or about any activity when a user is logged on including, chats, audio and video recording during virtual tutoring sessions, free text or drawings on the whiteboard during virtual tutoring sessions, and documents submitted to the Pear Deck Tutor Writing Lab.

Device and Usage Information: Pear Deck Tutor collects general device and usage information such as IP address, device identifier, operating system, browser type, non-precise geographic location, technical information about device and date and time stamps associated with logins.

Integration Information: If your school chooses to integrate Pear Deck Tutor Offerings with other Integration Offerings (e.g., integrate other School software with Pear Deck Tutor Offerings), then we will collect the information necessary to integrate and perform our Offerings, including unique identifiers (e.g., SIS data for enterprise integration).

2. Use of Personal Student Information

GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and Pear Deck Tutor may:

use Personal Student Information to provide and improve our Offerings and for other legitimate educational purposes, including, allowing students to access our Offerings, restricting access to certain websites, alerting schools to online content viewed by students, as well as enabling teachers to distribute educational material, view student activity, and exchange messages with their students. We may use Personal Student Information such as browsing information, device identifiers, cookies, or IP addresses to improve and understand usage of GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings, and/or Pear Deck Tutor Offerings.

use, transfer, and disclose non-personal information (information that does not, on its own, permit direct association with students' identities) for any lawful purpose. For example, we may aggregate and use information regarding usage of GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings and/or Pear Deck Tutor Offerings to help us understand which parts of our Offerings that are of most interest to schools. Aggregated data is considered non-personal information.

GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and Pear Deck Tutor may not:

sell Personal Student Information

use Personal Student Information to target advertisements or market to students or anyone else, to amass a profile about a K-12 educational student for a non-educational purpose, or for any purposes prohibited by the Family Educational and Privacy Rights Act (20 U.S.C. § 1232g; 34 CFR Part 99.3) ("FERPA"), applicable state law including

California Business & Professions Code section 22584 (“SOPIPA”), and California Education Code section 49073.1.

Lastly, as a company committed to student privacy, GoGuardian, Pear Deck, Pear Assessment, and Pear Practice have all signed the 2020 Student Privacy Pledge.

3. Disclosure of Personal Student Information to Third Parties

Depending on your School’s selection of GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings, and Pear Deck Tutor Offerings, and selected settings and policies within our Offerings, your School’s students may share information with teachers, administrators, and other school personnel, and tutors for Pear Deck Tutor Offerings. GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and/or Pear Deck Tutor Offerings may provide Personal Student Information to certain service providers that act on our behalf to support our Offerings and customers such as information processing and customer support technologies. We may also disclose Personal Student Information about your students if we determine that disclosure is reasonably necessary to enforce our terms and conditions or protect our operations or users; to comply in good faith with any law enforcement, legal, or regulatory process; or in connection with a health and safety exception; or with your School’s consent and/or at your School’s direction; or with parent/guardian/eligible student consent and/or at parent/guardian/eligible student’s direction. Additionally, in the event of a reorganization, merger, or sale, we may transfer any and all Personal Student Information your School provides to the relevant party subject to the terms of this Disclosure and our Product Privacy Policy.

4. Access, Correction, and Deletion of Personal Student Information

If your School has any questions or concerns regarding this Disclosure, or if your School would like to access, correct, or delete Personal Student Information on behalf of your School or pursuant to parent/guardian requests in accordance with COPPA (or in accordance with FERPA, or other applicable laws), please contact us at privacy@goguardian.com.

5. Consent to GoGuardian's, Pear Deck’s, Pear Assessment’s, Pear Practice’s and/or Pear Deck Tutor’s Collection, Use and Disclosure of Personal Student Information

By your School submitting payment (regardless of whether the payment is provided by you, your School’s billing/accounting office, or other School department) to GoGuardian, Pear Deck, Pear Assessment, Pear Practice, and/or Pear Deck Tutor and/or by you signing up for GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings, and/or Pear Deck Tutor Offerings as an authorized teacher or administrator, your School is consenting (or you are consenting on your School’s behalf) to GoGuardian’s, Pear Deck’s, Pear Assessment’s, Pear Practice’s, and Pear Deck Tutor’s collection, use, and disclosure of Personal Student Information as set forth in this Disclosure, and you represent and warrant that you have legal authority to provide this consent on behalf of each student. You understand that your School will be able to use GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings and/or Pear Deck Tutor Offerings made available to them in connection with your students, subject to your School’s selected GoGuardian Offerings, Pear Deck Offerings, Pear Assessment Offerings, Pear Practice Offerings, and/or Pear Deck Tutor Offerings and settings.

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Professional Services Addendum

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We help teachers deliver powerful learning moments to every student, every day.

Join our newsletter

We’ll send you a nice letter every two weeks. No spam.

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California Residents Notice

Your Privacy Rights

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05 | Data Processing Addendum

https://www.peardeck.com/policies/data-processing-addendum

Webpage text snapshot | Retrieved 10 October 2026

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Data Processing Addendum

Last Updated Date: January 22, 2024

Introduction

This Data Processing Addendum (the ”DPA” or ”Addendum”) forms part of the Liminex Products Terms of Service and End User License Agreement (available at https://www.peardeck.com/policies/product-terms-and-end-user-license-agreement) (”EULA”) between your Organization (or the ”School”) if the School is located in the European Union (”EU”), European Economic Area (”EEA”), Switzerland, or the United Kingdom, and Liminex, Inc. doing business as GoGuardian and Pear Deck Learning (”Liminex”). For purposes of this DPA, the School in this DPA shall be ascribed the same meaning as your Organization in the EULA.

In the event of any conflict between this DPA and the EULA with regard to the processing of Personal Data, this DPA will control to the extent of the conflict. All capitalized terms used but not defined in this DPA shall have the meaning ascribed to them in the EULA. For avoidance of doubt, this DPA shall not apply to Organizations, Schools or our customers located outside of the EEA or Switzerland.

In the course of providing our Products under the EULA, we may Process certain Personal Data (as such term is defined below) on behalf of the School, and where we Processes Personal Data on behalf of the School, the parties agree to comply with the terms and conditions in this DPA in connection with such Personal Data.

1. Definitions

1.1 Controller

Controller means the entity which determines the purposes and means of the Processing of Personal Data.

1.2 Data Protection Laws

Data Protection Laws means all laws and regulations, including laws and binding regulations of the EU, the EEA and their Member States (including the GDPR) and Switzerland, applicable to the Processing of Personal Data under the EULA.

1.3 Data Subject

Data Subject means the identified or identifiable person to whom Personal Data relates.

1.4 GDPR

GDPR means the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

1.5 Notification Email Address

Notification Email Address means the email address of the designated school official for the School.

1.6 Personal Data

Personal Data means any information that relates to an identified or identifiable natural person (i.e. the Data Subject), to the extent that such information is protected as personal data under applicable Data Protection Laws and is submitted by the School or its students (”School Data”) through the Products.

1.7 Process or Processing

Process or Processing means any operation or set of operations which is performed upon Personal Data, whether or not by automatic means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

1.8 Processor

Processor means the entity which Processes Personal Data on behalf of the Controller.

1.9 Products

Products means the Offerings as defined in the EULA.

1.10 Security Measures

Security Measures has the meaning given in Section 5.1.

1.11 Subprocessor

Subprocessor means any entity engaged by us to Process Personal Data in connection with the Products.

1.12 Supervisory Authority

Supervisory Authority means an independent public authority which is established by an EU/EEA Member State or Switzerland or the United Kingdom pursuant to Data Protection Laws.

2. Processing of Personal Data

2.1 Roles of the Parties and our Processing of Personal Data

The parties acknowledge and agree that with regard to the Processing of Personal Data, the School is the Controller, we are the Processor. By entering into this DPA, the School instructs us to Process Personal Data only in accordance with Data Protection Laws: (a) to provide the Products; (b) as further specified through the School's use of the Products (including through use of preference options and other functionality of the Products); (c) as documented in the EULA, including this DPA; and (d) as further documented in any other written instructions given by the School and acknowledged by us as constituting instructions for purposes of this DPA (together the "Purpose"). We may condition the acknowledgement described in (d) on the payment of additional fees or the acceptance of additional terms. We act on behalf of and on the instructions of the School in carrying out the Purpose including with regard to transfers of Personal Data outside the EU/EEA, unless EU/EEA Member State law or Swiss law to which we are subject requires other Processing of School Data by us, in which case we will inform the School (unless that law prohibits us from doing so on important grounds of public interest) via the Notification Email Address.

2.2 School's Processing of Personal Data

The School shall, in its use of the Products and provision of instructions, Process Personal Data in accordance with the requirements of applicable Data Protection Law. The School shall have sole responsibility for the accuracy, quality, and legality of Personal Data and the means by which the School acquired Personal Data.

2.3 Details of the Processing

i. The Term plus the period from the expiry of the Term until deletion of all School Data by us in accordance with the DPA.

ii. Purpose of the Processing. We will process School Data for the purposes of providing the Products to the School in accordance with the DPA and as defined under Section 2.1 above.

iii. Types of Personal Data Processed. The types of Personal Data processed is set forth in Annex I.

iv. Categories of Data Subjects Processed. The categories of Data Subjects are set forth in Annex I.

3. Rights of Data Subjects

3.1 Data Subject Requests

We shall, to the extent legally permitted, promptly notify the School if we receive any requests from a Data Subject to exercise rights in accordance with Data Protection Laws (each, a “Data Subject Request”). Taking into account the nature of the Processing, we shall assist the School by appropriate technical and organizational measures, insofar as this is possible, for the fulfillment of the School’s obligation to respond to a Data Subject Request under applicable Data Protection Laws. To the extent legally permitted, the School shall be responsible for any costs arising from our provision of such assistance, including any fees associated with provision of additional functionality.

4. Subprocessors

4.1 Appointment of Subprocessors

The School acknowledges and agrees that we may engage third party Subprocessors in connection with the provision of the Products. We will enter into a written agreement with each Subprocessor containing data protection obligations that provide the same data protection obligations for Personal Data as those in this DPA, taking into account the nature of the Products provided by such Subprocessor.

4.2 List of Current Subprocessors and Notification of New Subprocessors

A current list of Subprocessors for the Products, is available upon request. We shall inform the School of any intended changes concerning the addition or replacement of other Subprocessors, thereby giving the School the opportunity to object to such changes.

4.3 Liability

We shall be liable for the acts and omissions of its Subprocessors to the same extent we would be liable if performing the Products of each Subprocessor directly under the terms of this DPA.

5. Security

5.1 Our Security Measures

We will implement and maintain technical and organizational measures to protect School Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure or access (the ”Security Measures”) in accordance with Data Protection Laws, including as set forth in Annex II. We may update or modify the Security Measures from time to time provided that such updates and modifications do not result in the degradation of the overall security of the Personal Data.

5.2 Security Compliance by Our Staff

We will take appropriate steps to ensure compliance with the Security Measures by its staff to the extent applicable to their scope of performance, including ensuring that all such persons it authorizes to Process School Personal Data have committed themselves to confidentiality.

5.3 Our Security Assistance

The School agrees that we will (taking into account the nature of the Processing of School Personal Data and the information available to us) assist the School in ensuring compliance with any of the School’s obligations in respect of security of Personal Data (including in case of a Personal Data security incident), in accordance with applicable Data Protection Laws, by implementing and maintaining Security Measures. A current overview of our Security Measures will be provided to the School upon request.

6. School Data Incident Management and Notification

6.1 Incident Notification

We shall notify the School of any security incident relating to School Personal Data (within the meaning of applicable Data Protection Law) of which we become aware and which may require a notification to be made to a Supervisory Authority or Data Subject under applicable Data Protection Law or which we are required to notify to the School under applicable Data Protection Law (a ”School Data Incident”). We shall provide commercially reasonable cooperation and assistance in identifying the cause of such School Data Incident and take commercially reasonable steps to remediate the cause to the extent the remediation is within our control. The obligations herein shall not apply to security incidents with regard to any Personal Data not processed by us on behalf of the School under his DPA.

6.2 Delivery of Notification

Notification(s) of any School Data Incidents will be delivered to a Notification Email Address established by the School. The School is solely responsible for ensuring that the Notification Email Address is current and valid.

6.3 No Assessment of School Data by Us

We will not assess the contents of School Data in order to identify information subject to any specific legal requirements. The School is solely responsible for complying with legal requirements for incident notification applicable to the School and fulfilling any third party notification obligations related to any School Data Incident(s).

6.4 No Acknowledgement of Fault by Us

Our notification of or response to a School Data Incident under this Section 6 will not be construed as an acknowledgement by us of any fault or liability with respect to the School Data Incident.

7. Return and Deletion of School Data

7.1 Deletion Upon Termination

Upon termination of the EULA under which we are Processing Personal Data, we shall, upon the School’s request, and subject to the limitations of the School’s selected Products, return all School Data and copies of such data to the School or securely destroy them and demonstrate to the satisfaction of the School that it has taken such measures, unless applicable law prevents it from returning or destroying all or part of School Data. We may only continue to retain the School Data after such date if permitted by the applicable laws to which it is subject.

8. Demonstration of Compliance

No more than once per contract year as required by relevant Data Protection Laws and data protection authorities, during our regular business hours and at the School’s sole expense, we will make available to the School all information necessary to demonstrate compliance with the obligations laid down in this DPA and allow for and contribute to audits, including inspections, conducted by the School, pursuant to the agreement of the parties and a confidentiality agreement to our satisfaction, in a reasonable time and manner. As permitted by relevant law, we may fulfill this inspection or audit request by providing the School with an executive summary or SO2 or SOC2-successor or equivalent report by a reputable, independent third party. All information accessed or obtained by the School in connection with this audit shall be considered our confidential information.

We shall inform the School in compliance with and as required by relevant Data Protection Laws, if, in its opinion, a Purpose or any documented instruction it receives from the School with respect to the Processing of Personal Data, infringes or prevents it from complying with Data Protection Laws.

9. Limitation of Liability

9.1 Liability Under the EULA

Each party's liability, taken together in the aggregate, arising out of or related to this DPA, whether in contract, tort or under any other theory of liability, is subject to the 'Limitation of Liability' section of the EULA, and any reference in such section to the liability of a party means the aggregate liability of that party and its affiliates under the EULA and all DPAs together. For the avoidance of doubt, our total liability for all claims from the School arising out of or related to the EULA and this DPA shall apply in the aggregate for all claims under both the EULA and any DPA established under the EULA, including by multiple schools within a district, and, in particular, shall not be understood to apply individually and severally to schools within a district that is a contractual party to any such DPA.

10. Specific Provisions in the EU/EEA, United Kingdom, And Switzerland

10.1 Transfers of School Data Outside the EU/EEA or Switzerland

If School Data are stored and/or Processed outside the EU/EEA or Switzerland:

1. To the extent legally required, with respect to Personal Data transferred from the EEA and Switzerland, the parties are deemed to have signed the clauses issued pursuant to the EU Commission Implementing Decision (EU) 2021/914 of 4 June 2021 on standard contractual clauses for the transfer of personal data to third countries pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council, available at https://data.europa.eu/eli/dec_impl/2021/914/oj ("2021 Standard Contractual Clauses"), which form part of this DPA, and will be deemed completed as follows:

i. School acts as controller and we act as processor and Module 2 of the 2021 Standard Contractual Clauses applies to transfers of Personal Data from School to us;

ii. Clause 7 (the optional docking clause) is not included;

iii. Under Clause 9 (Use of sub-processors), the parties select Option 2 (General written authorization). We shall provide notice of updates to School at least ten (10) days in advance of any intended additions or replacements of sub-processors.

iv. Under Clause 11, the optional language requiring that data subjects be permitted to lodge a complaint with an independent dispute resolution body does not apply;

v. Under Clause 17, the parties choose Option 1 (the law of an EU Member State that allows for third-party beneficiary rights). The parties select the laws of Ireland;

vi. Under Clause 18, the parties select the courts of Ireland;

vii. Annexes I and II of the 2021 Standard Contractual Clauses are set forth below.

2. With respect to transfers of Personal Data that are subject to the Switzerland Federal Act on Data Protection ("FADP"), the 2021 Standard Contractual Clauses shall be deemed to have the following differences to the extent required by the FADP:

i. References to the GDPR are to be understood as references to the FADP insofar as the data transfers are subject exclusively to the FADP and not to the GDPR.

ii. The term "member state" shall not be interpreted to exclude data subjects in Switzerland from the possibility of suing for their rights in their place of habitual residence (Switzerland) in accordance with Clause 18(c).

iii. References to personal data in 2021 Standard Contractual Clauses also refer to data about identifiable legal entities until the entry into force of revisions to the FADP that eliminate this broader scope.

iv. Under Annex I(C): Where the transfer is subject exclusively to the FADP, the supervisory authority is the Swiss Federal Data Protection and Information Commissioner. Where the transfer is subject to both the FADP and the GDPR, the supervisory authority is the Swiss Federal Data Protection and Information Commissioner insofar as the transfer is governed by the FADP, and the supervisory authority is as set forth in the 2021 Standard Contractual Clauses insofar as the transfer is governed by the GDPR.

3. We shall maintain our membership in and comply with the EU-U.S. and Swiss-U.S. Data Privacy Frameworks with respect to such School Data transferred under such Frameworks.

10.2 Transfers of School Data Outside the United Kingdom

To the extent legally required, with respect to School Data transferred from the United Kingdom for which UK Data Protection Law (and not the law in any European Economic Area jurisdiction or Switzerland) governs the international nature of the transfer, the parties are deemed to have signed the International Data Transfer Addendum to the EU Commission Standard Contractual Clauses issued by the UK Information Commissioner's Office, available at https://ico.org.uk/media/for-organisations/documents/4019539/international-data-transfer-DPA.pdf ("UK Addendum"), which forms part of this DPA and takes precedence over the rest of this DPA to the extent of any conflict. The Tables within the UK Addendum shall be deemed completed as follows:

1. Table 1: The Parties' details shall be the Parties and their affiliates to the extent any of them is involved in such transfer, and the Key Contact shall be the contacts set forth in the Annex I of Schedule A below.

2. Table 2: The Approved EU SCCs referenced in Table 2 shall be the 2021 Standard Contractual Clauses as executed by the Parties and completed above.

3. Table 3: Annexes I and II are set forth in Schedule A below. Annex III is inapplicable.

4. Table 4: Either party may end this DPA as set out in Section 19 of the UK Addendum.

Schedule A

Annexes I and II of the 2021 Standard Contractual Clauses

ANNEX I

A. LIST OF PARTIES

Data exporter(s):

Name: The entity identified as "School" in the EULA.

Address: The address for School associated with its account or as otherwise specified in the EULA or other Agreement with us.

Contact person's name, position and contact details: The contact details associated with its account or as otherwise specified in the EULA or other Agreement with us.

Activities relevant to the data transferred under these Clauses: The processing activities set forth in the EULA, including our provision of the Products to the School.

Signature and date: By using the Products, the data exporter will be deemed to have signed this Annex I.

Role (controller / processor): Controller

Data importer(s):

Name: Liminex as identified in the EULA

Address: The address for us as specified in the EULA.

Contact person's name, position and contact details: The contact details for us as specified in the EULA.

Activities relevant to the data transferred under these Clauses: The processing activities set forth in the EULA, including our provision of the Products to the School.

Signature and date: By providing the Products on School's instructions, the

data importer will be deemed to have signed this Annex I.

Role (controller / processor): Processor

B. DESCRIPTION OF TRANSFER

Categories of data subjects whose personal data is transferred:

School officials, teachers, student end users and other individuals (such as parents) about whom data is provided to us via our Products by (or at the direction of) the School or by end users.

Categories of personal data transferred:

Data relating to school officials, educators, student end users, or other individuals (such as parents) provided to us via the Products, by (or at the direction of) the School or by student end users. The Personal Data provided may include: (a) product set up information, including number of devices, number of students, and network configuration, and a password; (b) information about School personnel and teachers and their permission levels in our Products; (c) requests submitted for Product support; (d) chats and video conferences within GoGuardian Teacher; (e) unique identifiers generated by us, and other relevant unique identifiers (f) a student's school-managed account information: student's name, email address, Google Profile ID, Google Image URL, organizational unit, and device identifiers necessary to associate a student with a certain device, unique/account identifiers for students generated by us; (g) depending on Products and features selected by the School, the student's browsing history, IP address, online content, snapshots, grade and attendance information, demographic information, and assessment information; (h) if the School chooses to integrate us with another school software system, unique identifiers necessary to connect our systems; (i) geographic location of devices for the purpose of the School locating and recovering its devices using GoGuardian Admin; (and) (j) parent's/guardian's name, email address, and optionally phone number from the School.

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialized training), keeping a record of access to the data, restrictions for onward transfers or additional security measure:

None anticipated, but the Products do not impose a technical restriction on the categories of Personal Data above provided through the Products.

The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis):

On a continuous basis for as long as School is engaging us to provide the Products.

Nature of the processing: The nature of the Processing is as forth in the EULA or other agreement between the parties.

Purpose(s) of the data transfer and further processing:

The purposes for the data transfer are to facilitate our provision of Products pursuant to the EULA or other agreement between the parties.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period:

The data will be retained for the time period needed to accomplish the purposes of processing, unless otherwise required by applicable law.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing:

Transfers to subprocessors are for the same purposes as transfers to the processor.

C. COMPETENT SUPERVISORY AUTHORITY

Identify the competent supervisory authority/ies in accordance with Clause 13: Ireland Data Protection Commissioner

ANNEX II

TECHNICAL AND ORGANISATIONAL MEASURES INCLUDING TECHNICAL AND ORGANISATIONAL MEASURES TO ENSURE THE SECURITY OF THE DATA

Description of the technical and organisational measures implemented by the data importer(s) (including any relevant certifications) to ensure an appropriate level of security, taking into account the nature, scope, context and purpose of the processing, and the risks for the rights and freedoms of natural persons.

Access Control and Management

We implement lifecycle management practices to ensure that all access is promptly terminated when user access is no longer necessary. Only authorized users are granted access to our information systems, and users are limited to specific defined, documented, and approved levels of access rights consistent with the least privilege principle.

Access to our information system is granted based on a valid need-to-know that is determined by assigned official duties and satisfying all personnel security criteria, separation of duties and intended system usage. Proper identification and approval is required for requests to establish system accounts.

Information must be classified and protected according to its risk profile. Any data classified as Confidential, Restricted, or with a required need for confidentiality or integrity, are stored on encrypted systems.

Data Recovery & Logging

As part of our Disaster Recovery Plan, we implement a backup solution to protect the availability of its information.

We retain system audit logs and records to the extent needed to enable the monitoring, analysis, investigation, and reporting of unlawful or unauthorized system activity. Network and Host-Based Intrusion Detection Systems are to be used, where applicable.

Configuration and Change Management

We implement a configuration management plan to meet the compliance requirements for each system and a change management program to track, review, approve, or disapprove, and log changes. We control and monitor user-installed software.

Incident Response

Our Incident Response Team responds to security incidents in accordance with our Incident Response Plan.

Media Protection

We protect removable and portable storage media that stores or processes non-public data with necessary measures, such as encryption, to ensure non-public data is prohibited from unauthorized access and disclosure.

Physical Protection

Our facilities maintain a list of individuals with authorized access to our offices. Our facilities and offices are protected by physical security measures to ensure information assets are physically protected from damage, unauthorized access, theft, and interruptions to business processes. Employees will have access to systems and facilities removed upon termination of employment.

Risk & Vulnerability Management

We, from time to time, identify reasonably foreseeable internal and external threats that could result in unauthorized disclosure, misuse, alteration, or destruction of organization owned or managed information or information systems. Areas of physical, administrative, and technical risks are assessed for potential impact and likelihood. Security controls in place to mitigate the resultant risks of identified threats are evaluated. We regularly conduct vulnerability scanning and testing and identify steps to reduce risk.

The installation of new types of equipment that are not currently on the approved list of network devices for our infrastructure network must be approved by a group prior to installation.

Backups & Recovery:

We implement a backup solution to protect the availability of its information. The frequency of information system backups and the transfer rate of backup information to an alternate storage site (if so designated) shall be consistent with our recovery objectives and internal policies.

We regularly perform data backups for all appropriate systems. All backup solutions and media are tested at least annually or as needed to ensure the highest integrity and availability.

System and Information Integrity

All endpoints capable of running anti-virus software must have installed company-approved and licensed anti-malware software. Vendor-supplied security updates, service packs, and patches are implemented on production systems in a timely fashion. Firewalls are used to protect the internal network resources from public networks such as the Internet.

We implement an encryption management program to use proven, government-approved, FIPS-validated encryption technologies in all IT systems that process, store, and transmit non-public data.

When sensitive information is transmitted over any publicly accessible communication network, it must be sent in encrypted form.

Training & Compliance

We conduct an IT Security Awareness and Training program that outlines the types and frequency of training sessions for all employees that meet organizational, security, compliance, and contractual requirements.

Users are required to observe and follow our policies, standards, and procedures at all times. Audits of compliance with this standard are performed on a regular basis.

Jump to a Section

Text Link

Policies

COPPA Disclosure & Consent Form

Data Processing Addendum

Giveaway and Sweepstakes Official Rules

Liminex Product Terms of Service and End User License Agreement

Pear Deck Learning Privacy Policy for Product Users

Pear Deck Learning Privacy Policy for Website Visitors

Pear Deck Learning Website Accessibility Statement

Pear Deck Tutor Code of Conduct

Professional Services Addendum

Website Terms of Service

We help teachers deliver powerful learning moments to every student, every day.

Join our newsletter

We’ll send you a nice letter every two weeks. No spam.

Solutions

Professional Services

Use Cases

Efficacy

Integrations

Products

Pear Start

Pear Deck

Pear Practice

Pear Assessment

Pear Deck Tutor

Go Guardian

GoGuardian Website

Classroom Management

Safety & Security

Get a Quote

Privacy & Trust

Company

About Us

GoGuardian

Newsroom

Security Reporting Program

Contact

People

Educators

Schools & Districts

Tutors

Resources

Blog

Resource Center

Help Center

Plans & Pricing

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Partners

Website Terms

Website Privacy Policy

Product Terms

Product Privacy Policy

Privacy & Trust

California Residents Notice

Your Privacy Rights

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https://www.peardeck.com/policies/privacy-policy-for-website-visitors

Webpage text snapshot | Retrieved 10 October 2026

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Pear Deck Learning Privacy Policy for Website Visitors

Last Updated Date: September 22, 2026

Introduction

Welcome! Liminex, Inc. (doing business as GoGuardian and Pear Deck Learning) and its family of company Affiliates and products including Pear Deck, Inc. (“Pear Deck”), Snapwiz, Inc. (referred to throughout as “Pear Assessment”), Zorro Holdco, LLC (referred to throughout as “Pear Deck Tutor”), and Pear Practice (“Pear Practice”) (together, “Liminex”, “we”, “us”, “our”) is an educational technology company that provides K-12 schools and school districts, and colleges and universities with digital learning tools designed to supercharge the learning potential of every student. Our Website refers to each of our general-audience, public-facing websites with a main landing page of goguardian.com or peardeck.com (each, the "Website"). This Website Privacy Policy applies to visitors and users of our Website and explains how we collect, use, share, disclose, and protect information from these visitors and users of our Website ("Website Privacy Policy").

This Website Privacy Policy does not apply to:

the use of our Offerings (as defined in our Liminex Products Terms of Service and End User License Agreement) by one of our school or school district customers or other organizational customers ("School(s)" or "your Organization"). For more information about how we treat information in our products, please visit our Privacy Policy for Product Users ("Product Privacy Policy"), and, as applicable to Schools in the European Economic Area ("EEA"), our Data Processing Addendum ("DPA"); or

organizations or third parties that we do not own or manage, or to individuals that we do not employ or manage. For example, there may be links to third parties available on our Website or support center. We encourage you to review the applicable third party privacy policies and terms of use before submitting any information through those sites or services.

Data submitted as a job applicant to Liminex and its Affiliates.

By using our Website, you are declaring that you have read and understand this Website Privacy Policy.

Note About Our General Audience Website: Our general audience Website is not geared towards children, nor meant to be used or accessed by children. If we become aware that we have collected "personal information" (as defined by the United States Children's Online Privacy Protection Act ("COPPA")) from a child in the United States under the age of thirteen (13) without legally-valid parental or school consent or that we have collected data through our Website from an European Union resident under the age of sixteen (16) without parental consent, we will take reasonable steps to delete it or obtain valid consent as soon as possible. We also comply with other age restrictions and requirements in accordance with applicable local laws.

1. The Information We Collect and the Ways We Use It

1.1 Information Provided Directly

We collect the following information directly from you as a visitor of our Website or from your School, if it lists you as a representative:

Requests for Information: If you submit a request for information or otherwise contact us through our Website, we collect your request and your identifying contact information (for clarity, references to contact information throughout this Website Privacy Policy includes name, email address, phone number and address).

Chats: We use chat technologies provided by a third-party vendor that employs cookies and software code to operate the chat features you can use to communicate with us. We and such third-party vendors may access and use information about webpages visited on our website, your IP address, your general geographic information (e.g., city,

state), and other personal information you share through online chats for the purposes described in this Website Privacy Policy.

Support Requests: If you submit a support request or question about our Website through our Support Center (e.g., Help Center), we receive your request/question and your associated identifying contact information.

Online Forums: If you use our Website to sign up as a member of our online community, blog, or similar options on our Website, we receive your contact information and your associated messages.

Partner Submissions: When a partner of a School and/or Liminex (e.g., a reseller partner helping a School obtain equipment and software from Liminex) first signs up as a partner of Liminex or submits a request through our reseller portal on our Website, we collect both that partner organization's and partner representative's contact information as well as both the School and School Official's contact information. If you are a School Official or partner representative, then we collect this information about you.

We use contact information, requests for information, support messages, online forums information, and partner submissions for our business purposes, including to:

provide customer service, provide you support and respond to your requests;

notify you via email of new features and products that may be of interest to you through updates and marketing communications;

notify you of company updates and notable events update and marketing communications;

help secure our Website, prevent fraud and enforce our legal terms; and

administer and troubleshoot our Website.

1.2 Information We Collect Automatically

As you visit or use our Website, we may automatically collect network activity and device usage information including:

Device information and related identifiers: including your IP address, browser type, browser language, operating system, device identifiers, operating system, the state or country from which you accessed the Website, and software and hardware attributes. From your IP address, we may be able to infer your general location (e.g., city/state or postal code).

Usage Information: including referring and exit pages and URLs, platform type, the number of clicks, files you download, domain names, landing pages, pages viewed and the order of those pages, the amount of time spent on particular pages, the date and time you used the Website, error logs, language preferences, and other similar information. This includes analytics information which we collect via Google Analytics and other similar services and information we collect when you click on an advertisement for our products and services on other websites and services. If you then interact with our Website, we may combine the information about your activity with our advertisement with the information we subsequently collect and/or you subsequently submit on our Website.

Location Information: When you use the Services, we and our service providers collect general location information from your computer or mobile device. “General” location information means information about the city and state in which your device is located based on its IP address. We may also obtain general location when you input your zip code or use location features on the Services, such as to find nearby merchants.

Cookies: We and our third party partners use Cookies. To learn more about our use of Cookies and your choices about Cookies, please see our Cookies Notice below.

We use the information that we collect through our Website for our business purposes, including to:

provide you with our Website;

respond to your requests and provide you with support;

notify you via email of new features and products that may be of interest to you;

notify you of company updates and notable events;

analyze and improve our Website;

audit and understand the effectiveness of our placement of our advertisements on third party websites;

remind you of us through advertisements after you have used our Website;

secure our Website and help prevent fraud and enforce our legal terms; and

administer and troubleshoot our Website.

1.3 How We Disclose Information Collected Through Our Website

We may disclose any of the information collected from our Website in the following ways:

Third Parties Supporting Our Website: We disclose information with service providers that assist us in performing business-related functions that support or improve our Website. For example, we use hosting services and customer service tools to support our Website. When we employ another company to perform a function of this nature, we provide them with the information that they need to perform their specific function.

Third Parties that Provide Advertising Services. We may use third party advertising services that collect or receive certain information about you and/or your visit to the Website to provide ads about our products and services on other sites or to measure and analyze ad performance.

Our Protection and Others: We may share or disclose the information if we believe in good faith that doing so is necessary or appropriate to (i) protect or defend the rights, safety, or property of us or our third parties, including to defend or enforce our Website Privacy Policy, our Website Terms of Service, or our EULA, or any other contractual arrangement or (ii) to respond to claims that content violates the rights of third parties.

Legal Requirements: We may share or disclose the information if we believe in good faith that doing so is necessary or appropriate to comply with any law enforcement, legal, or regulatory process, such as to respond to a warrant, subpoena, court order, or other applicable laws and regulations.

With Your Consent / At Your Direction: We also may share or disclose the information collected through our Website with your consent or at your direction.

Business Transfer: We may share or disclose the information, in connection with or during negotiations of any merger, sale of company assets, financing, or acquisition of all or a portion of our business to another company. If such transfer is subject to additional mandatory restrictions under applicable laws, Liminex will comply with such restrictions. The successor entity will be subject to all applicable federal and state laws, including privacy laws.

1.4 Data Controller vs. Processor; Our Legal Basis for Using Your Information

Under applicable law, we are considered the "data controller" of information from or about our Website visitors. In other words, we are responsible for deciding how to collect, use, share, and disclose this information.

The laws of some jurisdictions such as the laws of the European Union ("EU") require companies to tell you about the legal ground that they rely on for using, sharing, or disclosing your information. To the extent those laws apply, our legal grounds are as follows:

Contractual Commitments: We may use, share, or disclose information to honor our contractual commitments to you. For example, to comply with our Website Terms, which you accept by browsing our otherwise using our Website.

With Your Consent: Where required by law, and in some other cases, we use, share, or disclose information on the basis of your consent.

Legitimate Interests: In many cases, we use, share, or disclose information on the ground that it furthers our legitimate business interests in ways that are not overridden by the interests or fundamental rights and freedoms of the affected individuals, such as customer service, certain promotional activities, analyzing and improving our business, providing security for our Website, preventing fraud, and managing legal issues.

Legal Compliance: We need to use, share, and disclose information in certain ways to comply with our legal obligations.

1.5 How Long We Keep Information

We generally retain information for so long as it may be relevant to the purposes above. We consider the nature and sensitivity of the information, the purposes for which we process the information, applicable legal requirements, and our legitimate interests in determining how long to retain information. The purposes for which we use information may dictate different retention periods for the same types of information. For example, if you opt out of email marketing, we maintain your email on our suppression list for an extended time to comply with your request. To dispose of any personal information, we may anonymize it, delete it or take other appropriate steps. Information may persist in copies made for backup and business continuity purposes for an additional time period of time.

1.6 How We Protect Your Information

We take the security and privacy of your data very seriously. For these reasons, we have implemented various technical, administrative, and physical safeguards to protect your information. These safeguards vary depending on the sensitivity of the information at issue.

We are committed to preventing unauthorized access to our systems and data, and will investigate any possible occurrence. In the event of a breach of personal data, we will comply with all relevant breach laws.

1.7 Your Rights and Choices

1.7.1 Privacy Rights

Residents of certain jurisdictions (including the EEA, UK, Switzerland, California, Colorado, and Virginia) may request that we:

provide access to and/or a copy of certain information we hold about you

update information which is out of date or incorrect

delete certain information which we are holding about you

restrict the way that we process and disclose certain of your information

Please note that your rights may vary depending upon your jurisdiction and be subject to exceptions under law.

To exercise any of these rights, please contact us at privacy@goguardian.com. Authorized agents for California residents may submit requests at: https://www.goguardian.com/policies/ccpa-requests. We may require proof of the written authorization you have given.

We will consider all of your requests and provide our response within the time period stated by applicable law. Please note, however, that certain information may be exempt from such requests in some circumstances, which may include needing to continue processing your information for our legitimate interests or to comply with a legal obligation. We may request that you provide us with information necessary to confirm your identity before responding to your request.

Virginia residents may appeal the denial of a request here: privacy@goguardian.com. We will respond within the legally required time period, including a written explanation of the results of your appeal. In addition to those rights, you may have the right to lodge a complaint with the relevant supervisory authority. However, we encourage you to contact us first, and we will do our very best to resolve your concern.

1.7.2 Privacy Choices: Do Not Sell or Share or Process My Personal Information for Targeted Advertising

Residents of certain states such as California and Virginia and Colorado may opt out of the “sale” of their personal information. Such residents may also opt out of the sharing or processing of their personal information for targeted advertising. Applicable law broadly defines “sale” or “share” in a way that may include allowing third parties to receive certain information such as cookies, IP address, device identifiers, browsing behavior and/or other activity for targeted advertising. As such, we may share or process for targeted advertising to you the following categories of information for such purposes which may be considered a sale: device information and identifiers, such as IP address, and unique advertising identifiers and cookies; connection and usage information, such as browsing history or app usage, geolocation information, such as city; and inference data.

If you or your authorized agent would like to opt out of the use of your information for such purposes, you may do so as outlined on the following page: Do Not Sell My Personal Information.

You may still receive advertising; it just may not be tailored to your interests. Please note, if you use different browsers or devices, you will need to make your choice on each browser or device you want your choice to apply. In some cases, you may also be presented with a form field to complete, in those cases we ask for your email address or other information so we may add it to an appropriate suppression list.

Please note that if you have a legally recognized browser-based opt out preference signal turned on via your device browser (such as Global Privacy Control), we recognize such preference in accordance with and to the extent required by applicable law (in the locations required).

In addition to the rights and choices identified above with respect to specific jurisdictions, you have certain rights and choices with respect to your information such as:

Marketing Communications: You can decline promotional communications at the point information is requested for such purpose on our Website (e.g., by checking or un-ticking (as directed) the relevant box) or, by following the unsubscribe instructions on communications sent to you. You can also contact us as described in the "How to Contact Us" section below.

Cookies & Analytics. You can opt out of certain cookie-related and analytics processing by following the instructions in our Cookie Notice below.

Do Not Track: Do Not Track ("DNT") is a privacy preference that users can set in certain web browsers to inform websites and services that they do not want certain information about their webpage visits collected over time and across websites or online services. At this time, we do not recognize or respond to browser-initiated DNT signals, but we do recognize opt out preference signals as set forth above.

1.8 Additional Information for California Residents

If you are a California resident, California law requires us to provide you with some additional information. We collect the following categories of personal information: identifiers (such as your name and email address); internet or other network information (how you interact with the our Website); location information (because your IP address may indicate your general location); inference data about you (for example, what product you may be interested in); and other information that identifies or can be reasonably associated with you (such as your correspondence with us). For more information about what we collect, the sources of such collection, please see the “The Information We Collect and the Ways We Use It” section above. For more information about how we treat information in our products, please visit our Privacy Policy for Product Users.

We collect personal information for the following purposes:

provide you with our Website;

respond to your requests and provide you with support;

notify you via email of new features and products that may be of interest to you;

notify you of company updates and notable events;

analyze and improve our Website;

audit and understand the effectiveness of our placement of our advertisements on third party websites;

remind you of us through advertisements after you have used our Website;

secure our Website and help prevent fraud and enforce our legal terms; and

administer and troubleshoot our Website.

As described above, California law broadly defines “sale” or “share” in a way that may include allowing third parties to receive certain information to enable the delivery of targeted advertising on the or other sites. As such, we may share the following categories of information for such purposes which may be considered a sale (as defined by California law):device information and identifiers, such as IP address, and unique advertising identifiers and cookies; connection and usage information, such as browsing history or app usage, geolocation information, such as city; and inference data.

If you or your authorized agent would like to opt out of the use of your information for such purposes (to the extent this is considered a sale), you may do so as outlined on the following page: Do Not Sell My Personal Information.

Shine the Light Disclosure: The California “Shine the Light” law gives residents of California the right under certain circumstances to request information from us regarding the manner in which we share certain categories of personal information (as defined in the Shine the Light law) with third parties for their direct marketing purposes. We do not share your personal information with third parties for their own direct marketing purposes.

We retain your information as long as it is necessary to fulfill the purposes for which we collect it, unless a longer retention is required or permitted by law. We consider the nature and sensitivity of the information, the purposes for which we process the information, applicable legal requirements, and our legitimate interests in determining how long to retain information. Different processing purposes may dictate different retention periods for the same types of information. For example, if you opt out of email marketing, we maintain your email on our suppression list for an extended time to comply with your request.

2. Notice to EU and Other Non-U.S. Residents

Our Website is operated in the United States. If you are located outside of the United States, please be aware that any information you provide to us will be transferred to and/or accessed within the United States. The recipients of information described in the relevant "How We Disclose Information Collected Through Our Website" sections above may be located in the United States. This information may be subject to United States law, including laws that may require disclosure of personal information to government authorities.

The European Union-United States, UK Extension to the European Union-United States Data Privacy Framework, and Swiss-United States Data Privacy Framework: We comply with the European Union-United States, the UK Extension to the European Union-United States Data Privacy Framework, and Swiss-United States Data Privacy Framework (collectively, the “Framework” and their principles, the “Framework Principles”) as set forth by the United States ("U.S.") Department of Commerce regarding the collection, use, and retention of "personal data" (as defined under the Framework principles) from applicable European Economic Area (“EEA”) countries. We have certified to the U.S. Department of Commerce that we adhere to the Framework Principles with respect to such personal data transferred under the Framework. To the extent there is any conflict between the terms in this Website Privacy Policy and the Framework Principles, the Framework Principles shall govern. To learn more about the Framework and view our certification, visit the Department of Commerce's Framework list by clicking here.

As required under the Framework principles, when we receive personal data under the Framework and then transfer it to a third-party service provider acting as an agent on our behalf, we have certain liability under the Framework if both (i) the agent processes the information in a manner inconsistent with the Framework; and (ii) we are responsible for the event giving rise to the damage.

We may also protect personal data through other legally valid methods, including international data transfer agreements.

Other Legal Rights: Some international users (including those whose information we collect under the Framework) of our Website have certain legal rights to access certain information we hold about them and to request its deletion. For example, some international laws may permit you to:

request that we provide access to and/or a copy of certain information we hold about you; prevent the processing of your information for direct-marketing purposes (including any direct marketing processing based on profiling);

update information which is out of date or incorrect; delete certain information that we are holding about you; restrict the way that we process and disclose certain of your information; transfer your information to a third party provider of services; and

revoke your consent for the processing of your information.

Please see the "Your Rights and Choices" section above for more information.

How to Contact Us for Non-U.S. Residents: If you are located outside the United States and have questions or concerns regarding our Website Privacy Policy or practices, you may direct a complaint in writing to Privacy Officer, 8605 Santa Monica Blvd., #996559, West Hollywood, CA, 90069-4109. Tel: 1-888-310-0410 Email: privacy@goguardian.com. Within a reasonable time of receiving the written complaint, we will review and address your complaint, as appropriate, and inform you of the results of such review and any steps taken to address your complaint.

Dispute Resolution for EU and Swiss Residents: If you are a resident of the EU or Switzerland whose personal data is subject to the Framework, and are dissatisfied with the manner in which we have addressed your concerns or we fail to respond to you within 45 days of your complaint, you may seek further assistance, at no cost to you, from our designated Data Privacy Framework independent recourse mechanism, the JAMS Data Privacy Framework Program, which you can learn more about by visiting https://www.jamsadr.com/eu-us-data-privacy-framework. Residents of the EU or Switzerland whose personal data is subject to the Framework may, in certain circumstances, elect to arbitrate unresolved complaints by invoking binding arbitration pursuant to the Framework's Recourse, Enforcement and Liability Principle and Annex I of the Framework (see: https://www.dataprivacyframework.gov/s/article/How-to-Submit-a-Complaint-Relating-to-a-Participating-Organization-s-Compliance-with-the-DPF-Principles-dpf) but prior to initiating such arbitration, you must: (1) afford us the opportunity to resolve the issue; (2) seek assistance via our recourse mechanism above; and (3) contact the U.S. Department of Commerce (either directly or through the relevant Data Protection Authority) and afford the U.S. Department of Commerce time to attempt to resolve the issue. Each party shall be responsible for its own attorney's fees. Please be advised that, pursuant to the Framework, the arbitrator(s) may only impose individual-specific, non-monetary, equitable relief necessary to remedy any violation of the Framework Principles with respect to the individual. We are subject to the investigatory and enforcement powers of the U.S. Federal Trade Commission (FTC).

3. Cookies Notice

3.1 What are cookies?

Cookies are small text files stored on your computer that allow us to understand usage of our Website. Cookies include cookies, Internet server logs, tags, Software Development Kit/SDKs, tracking pixels, and other similar tracking technologies. A number of Cookies that we use last only for the duration of your session, expiring when your session ends (the so-called "session cookies"). Other Cookies are used to help our systems recognize you if you return to our Website and will thus be retained longer (the so-called "persistent cookies"). Some of the cookies used on our Website are set by us, and some are set by third parties that are delivering services on our behalf.

3.2 What types of Cookies do we use and what data do they collect?

We use Cookies on our Website that automatically collect information to:

understand how many unique visitors frequent our Website;

analyze usage of our Website, including to improve our Website;

authenticate your account for our Website services;

remember your settings and account information for our Website services;

understand the effectiveness of our advertisements placed on third party websites; and

show you advertisements about us after you visit our Website such as our blog.

We do not use any advertising Cookies in our Products and we do not place advertisements in our Products.

3.3 What are your choices about Cookies?

You can learn more about how Cookies work and how to turn them off in your particular browsers. Please remember that if you replace, change or upgrade your browser, or delete your Cookies, you may need to use these opt-out tools again.

For information about Cookies used by the developers of these browsers, please visit:

Internet Explorer

Google Chrome

Internet Explorer

Mozilla Firefox

Safari (Desktop)

Safari (Mobile)

Android Browser

For controls specific to advertising and analytics services offered by Google, click here and here from each of your browsers.

For more information about advertising and how you can turn off certain advertisements in general, please visit youronlinechoices.com and www.youronlinechoices.com.au and www.youradchoices.com.

4. Changes to this Privacy Policy

We may change this Website Privacy Policy to reflect changes in the law, our information practices, or components of our Website. At the top of our Website Privacy Policy, we will indicate the date of the most recent update to this Website Privacy Policy. Where required by applicable law, we will apply changes only after notifying and/or obtaining your consent before any material changes to our Website Privacy Policy apply to you.

5. COPPA Safe Harbor

Protecting children's and student's privacy is especially important to us. We participate in the iKeepSafe Safe Harbor program. We have been granted the iKeepSafe COPPA Safe Harbor seal signifying that GoGuardian's Website as well as the software that runs the Website and the GoGuardian Offerings (GoGuardian Admin, GoGuardian Teacher, and GoGuardian Beacon) have been reviewed and approved for having policies and practices surrounding the collection, use, maintenance and disclosure of personal information from children consistent with the iKeepSafe COPPA Safe Harbor program guidelines. COPPA protects the online privacy of children under the age of 13; below is an email for iKeepSafe Safe Harbor program:

Email: privacy@ikeepsafe.org

6. How to Contact Us

If you have questions or concerns, the best way to reach us is by emailing privacy@goguardian.com. You can also reach us by calling 888-310-0410 or by writing to Liminex, Inc., Attn: Privacy Officer, 8605 Santa Monica Blvd., #996559, West Hollywood, CA, 90069-4109.

Additionally, please feel free to consult additional resources such as the ones listed below.

Student Privacy Resource List:

Student Privacy Pledge

Student Privacy Compass

Department of Education's Privacy Technology Assistance Center ("PTAC")

The Federal Trade Commission's Complying with COPPA: Frequently Asked Questions

Jump to a Section

Text Link

Policies

COPPA Disclosure & Consent Form

Data Processing Addendum

Giveaway and Sweepstakes Official Rules

Liminex Product Terms of Service and End User License Agreement

Pear Deck Learning Privacy Policy for Product Users

Pear Deck Learning Privacy Policy for Website Visitors

Pear Deck Learning Website Accessibility Statement

Pear Deck Tutor Code of Conduct

Professional Services Addendum

Website Terms of Service

We help teachers deliver powerful learning moments to every student, every day.

Join our newsletter

We’ll send you a nice letter every two weeks. No spam.

Solutions

Professional Services

Use Cases

Efficacy

Integrations

Products

Pear Start

Pear Deck

Pear Practice

Pear Assessment

Pear Deck Tutor

Go Guardian

GoGuardian Website

Classroom Management

Safety & Security

Get a Quote

Privacy & Trust

Company

About Us

GoGuardian

Newsroom

Security Reporting Program

Contact

People

Educators

Schools & Districts

Tutors

Resources

Blog

Resource Center

Help Center

Plans & Pricing

Product Updates

Success Stories

Advocacy Program

Partners

Website Terms

Website Privacy Policy

Product Terms

Product Privacy Policy

Privacy & Trust

California Residents Notice

Your Privacy Rights

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07 | Product Terms

https://www.peardeck.com/policies/product-terms-and-end-user-license-agreement

Webpage text snapshot | Retrieved 10 October 2026

Skip to Main Content

Liminex Product Terms of Service and End User License Agreement

Liminex Products Terms of Service and End User License Agreement

Last Updated Date: May 8, 2026

Introduction

Welcome! Before using any of our Offerings, please take the time to review this combined Terms of Service and End User License Agreement (“EULA”), together with any applicable Order Form(s), the Product Privacy Policy, and, if applicable, the Data Processing Addendum and Professional Services Addendum (collectively, the “Agreement”). Capitalized words have the definitions set forth throughout this Agreement, including in Section 17 (Definitions).

When does this Agreement apply? This Agreement governs the use of the Offerings and is a binding contract between you, the school or school district (“School” (as further defined below), “you,” “your”), and Liminex, Inc. doing business as GoGuardian and Pear Deck Learning, and acting on behalf of itself and its Affiliates (collectively, “Liminex”, “GoGuardian”, “we”, “us”, or “our”). This Agreement is distinct from our Website Terms of Service, which governs only use of our Website.

BY CLICKING AN “I AGREE” OR “I ACCEPT” BUTTON; EXECUTING AN ORDER FORM THAT REFERENCES THIS AGREEMENT; COMPLETING THE REGISTRATION PROCESS; OR INSTALLING OR USING ANY OFFERINGS IN ANY WAY (THE DATE OF SUCH ACTION, THE “EFFECTIVE DATE”), SCHOOL AGREES TO THE TERMS OF THIS AGREEMENT. IF THE INDIVIDUAL ACCEPTING THIS AGREEMENT IS ACCEPTING THIS AGREEMENT ON BEHALF OF A SCHOOL, SCHOOL DISTRICT, CORPORATION, ORGANIZATION OR OTHER LEGAL ENTITY, SUCH INDIVIDUAL REPRESENTS AND WARRANTS THAT THEY ARE AT LEAST EIGHTEEN (18) YEARS OLD AND HAVE THE AUTHORITY, THE RIGHT, AND THE CAPACITY TO LEGALLY BIND SUCH SCHOOL, SCHOOL DISTRICT, CORPORATION, ORGANIZATION OR OTHER LEGAL ENTITY AND ITS AFFILIATES TO THIS AGREEMENT, IN WHICH CASE THE TERM “SCHOOL” SHALL REFER TO EACH SUCH ENTITY AND ITS AFFILIATES.

You are free to reject this Agreement, but if you do not agree with all of the provisions of this Agreement, then you may not use any of our Offerings in any way.

IMPORTANT NOTICES:

Section 15.2 contains provisions governing how claims are resolved between us, including a requirement for binding arbitration and class action waiver.

You understand that use of some of our Offerings may require the consent for monitoring and recording information and communications of all users on the Managed Devices or Accounts under Applicable Law. You represent and warrant that you have obtained such requisite consent.

We may make non-material modifications to this Agreement or changes that expand our obligations, reduce your obligations, or introduce a new product offering immediately without notice to you. Otherwise, we will only modify or replace this Agreement after providing notice to you in accordance with Section 16.1. You are responsible for regularly reviewing your Account and our Website for any changes to the Agreement.

Your use of, and participation in, certain Offerings may be subject to additional terms (“Supplemental Terms”) and such Supplemental Terms will either be listed in this Agreement, an Order Form or will be presented to you for your acceptance when you sign up to use such Offerings. If this Agreement is inconsistent with the Supplemental Terms, the Supplemental Terms will control with respect to the Offerings to which they apply.

[We have included, in italics and brackets at the beginning of each section, summaries that provide short explanations of the legal language in plain English to aid in understanding, but such summaries are not legally binding.]

1. Getting Access to and Started with Our Offerings

[This Section explains how to establish and maintain Account(s). This Section describes the importance of being mindful about the information and settings in an Account – the value of our tools is dependent on the accuracy of the information you provide and the proper selection of product settings.]

We generally make our Offerings available on a paid, subscription-based license. As further described in Section 4.1, from time to time and in our sole discretion, we may offer limited free, trial or Beta Offerings at no additional charge.

1.1 Ordering

You may obtain Subscriptions to our Offerings either directly from us or one of our Affiliates or indirectly through one of our Authorized Resellers. If you purchase a Subscription to an Offering through an Authorized Reseller, you will enter into an Order Form directly with such Authorized Reseller and may be subject to additional terms as agreed upon between you and the Authorized Reseller. You expressly agree that this Agreement governs your access to and use of any Offering that you acquire from an Authorized Reseller, as well your relationship with us as to any products or services you purchase through an Authorized Reseller. You further agree that we and our Affiliates have the right to enforce the terms of this Agreement with respect to such purchases. You also acknowledge that no Authorized Reseller is authorized to provide warranties with respect to any Offerings in excess of those provided by us in this Agreement. The terms regarding any value-added services provided to you by an Authorized Reseller are solely between you and the Authorized Reseller and we have no responsibility for any such services.

If during a Subscription Term, you would like to expand your base Subscription(s) to include additional licenses above your Licensed Capacity, please contact us so that we can send you an additional Order Form for those Add-Ons. If we do not hear from you and you deploy additional licenses, we or, as applicable, an Authorized Reseller will send you an Order Form and invoice you for the Subscriptions to the Add-Ons that you use above your Licensed Capacity. Add-Ons, once deployed and paid, will be rolled into your base Subscription.

If an Order Form with School indicates that any School Affiliates will be receiving access to the Offering(s) hereunder, each of them will be bound by the terms of this Agreement as if they were an original party hereto.

1.2 Accounts

Before accessing certain Offerings, you may be required to create an Account. When setting up your Account, you may link your Offerings with your Google, Microsoft, and/or Learning Management System (“LMS”) account for ease of sign on and, for certain Offerings, to pull in a directory of Managed Devices or Accounts. In linking your Account to your Google, Microsoft, and/or LMS account, you are granting us access to certain account information from your Google, Microsoft, and/or LMS account, as permitted under the applicable terms and conditions that govern your use of that Google, Microsoft, or LMS account.

1.2.1 Authorized Users

Within your Account, you may have the ability to enable separate sub-accounts for Authorized Users. You are responsible for issuing and maintaining such sub-accounts only for appropriate Authorized Users, as well as issuing and maintaining appropriate permission settings for each Authorized User.

1.2.2 School Information

When creating an Account, you agree to (a) provide true, accurate, current and complete information necessary to create the Account and to deploy the Offerings you have subscribed to on Managed Devices or Managed Accounts; and (b) promptly update any such information to maintain its accuracy and completeness during the Term. Without limiting the generality of the foregoing, you agree to provide and maintain accurate, up-to-date and complete School Profile Information, Authorized School Personnel Information, Personal Student Information, Parent/Guardian Information, and Association Information. You acknowledge and agree that proper implementation and operation of certain Offerings depends largely on the accuracy, completeness and timeliness of the Personal Student Information, Parent/Guardian Information and Association Information ingested into the Offering; therefore, it is of the utmost importance that you take great care in maintaining and updating this Personal Student Information, Parent/Guardian Information and Association Information at all times during the Term.

You are responsible for ensuring the confidentiality and security of School Account Information, including protecting, and requiring your Authorized Users to protect, usernames and passwords associated with your Account, and notifying us immediately if you suspect or know that (1) a username and password is known by someone other than the applicable Authorized User; and/or (2) your Account (including any individual Authorized User sub-account) has been compromised.

1.2.3 Account Settings

You are responsible for selecting and updating the settings in the Offerings you subscribe to as you see fit and ensuring that the selections comply with all Applicable Law, as well as any guidelines and requirements you have established, including, with respect to use of the GoGuardian Offerings, for monitoring Managed Devices or Accounts and parents' or guardians' authorization of such monitoring. If you have questions about any settings in an Offering or your Account, such as permissions and settings associated with Managed Devices or Accounts, please visit our Help Center and/or contact support@goguardian.com (GoGuardian Offerings), support@deck.peardeck.com (Pear Deck), support@assessment.peardeck.com (Pear Assessment), or support@practice.peardeck.com (Pear Practice).

1.3 Payment Terms

Fees due for initial orders, any Add-Ons to, and any Subscription renewals of Offerings ("Fees") shall be set forth in the applicable Order Form. Fees for Subscriptions you purchase directly from Liminex or one of its Affiliates shall be paid within thirty (30) days of the date of our issuance of an invoice for such purchases, unless otherwise stated on an Order Form. Payment obligations for purchases made through an Authorized Reseller shall be as agreed upon by you and the Authorized Reseller.

Fees do not include any taxes, levies, duties or similar governmental assessments of any nature, including, for example, value-added, sales, use or withholding taxes, assessable by any jurisdiction. You are responsible for paying all such taxes, levies, duties and assessments associated with purchases and transactions under this Agreement.

Unless otherwise stated on an Order Form, Fees are paid in advance of each billing period. Payment obligations under this Agreement are non-cancelable and all Fees paid are non-refundable. Upon your cancellation or termination of any Subscription, you remain responsible for payment of all Fees allocable to the terminated portion of the Subscription Term referenced in the applicable Order Form without any refund owed to you, unless otherwise mutually agreed to in writing between you and us.

Upon notice to you, we may increase any Fees specified in an Order Form, provided the increase will not become effective until the expiration of the current Subscription Term. We may increase any Fees that are not specified in an Order Form at any time, with or without notice to you. We may allow you to continue using a free, trial or Beta Offering on a paid Subscription basis, but your continued use and your Subscription would be subject to a completed Order Form and payment of the applicable Fees.

For certain Offerings, we will endeavor to notify you if your Account has delinquent Fees. If delinquent fees are not paid, we will suspend your use of the Offering(s).

2. Offerings

[This Section explains more about the Offerings, including updates to such offerings and linkages with other third-party integration software that we make available to you. Offerings may experience downtime or we may suspend access to Offerings in certain situations.]

2.1 Access and Updates to Offerings

We will make our Offerings to which you have a Subscription available to you, subject to the terms of this Agreement. From time to time, we may also make updates to the Offerings available to you. You agree that we may, without advance notice to you, automatically install or add updates, upgrades, and/or new features to the Offerings that we deem to be reasonable, beneficial to you, and/or reasonably necessary. You acknowledge and agree that any obligation we may have to support previous version(s) of any Offering may end when we release an update, upgrade, and/or additional feature for the Offering. The license granted for a Subscription shall apply to any updates, upgrades, and/or additional features that are not distributed with a separate license or other agreement. If we make any material changes to an Offering, we will notify you within the Offering interface or by sending you an email.

With respect to an Offering accessed through or downloaded from the Apple App Store, Google Play Store, or Microsoft Store (each, an “App Store” and such Offering an “App Store-Sourced Application”), you acknowledge and agree that the availability of the App Store-Sourced Application is dependent on the App Store.

2.2 Downtime and Suspension of Offerings

You acknowledge that you may experience downtime (a) as a result of our conducting maintenance or (b) in connection with a force majeure event (as described in Section 16.5). In addition, you acknowledge that we may, at our discretion, suspend your access or suspend access of one of your Authorized Users to the Offerings for your breach or your Authorized Users’ breach of this Agreement, including if we have reasonable grounds to suspect that any School Account Information provided by you or any Authorized User is untrue, inaccurate, not current or incomplete; we deem it reasonably necessary to avoid or mitigate harm to us, you, any other of our customers or a third party if the Offerings were not suspended; or to comply, in our sole discretion, with legal requirements.

2.3 Integrations with Offerings

We may allow you to access certain third-party software or offerings (e.g., YouTube) through your Account via an application programming interface (“API”) or other technical connection (such software or offering, an “Integration Offering”). Because you control whether to integrate and use an Integration Offering, you are solely responsible for all interactions with the Integration Offering, including ensuring appropriate privacy, contractual, and other protections with it as well as ensuring that you are complying with any terms, such as the YouTube Terms of Service, you are required to agree with the provider of such Integration Offering depending on the Integration Offering being accessed. Integration Offerings are not “Offerings” under this Agreement and are not subject to any of the warranties, service commitments or other obligations with respect to Offerings hereunder. The availability of any Integration Offering through any of our Offerings does not imply our endorsement of or affiliation with the provider of such Integration Offering. We do not control any Integration Offering and will have no liability to you in connection with any Integration Offering. We have no obligation to monitor or maintain access to Integration Offerings and may disable the ability to integrate with them or restrict access to any Integration Offerings at any time, with or without notice to you (though we, of course, will endeavor to provide notice of any such disabling whenever reasonably practicable under the circumstances). By using or enabling any Integration Offering, you are expressly permitting us and our Affiliates to disclose your School Profile Information, and, to the extent applicable to your Offering, your Authorized School Personnel Information, Personal Student Information, Parent/Guardian Information, Association Information or other information, including support requests and School Log and Cookie Information to the extent necessary to utilize the Integration Offering. Regarding the Google Workspace API, we do not use this API to develop, improve, or train generalized artificial intelligence and/or machine learning models. YOUR USE OF ANY INTEGRATION OFFERINGS IS AT YOUR OWN RISK AND IS SUBJECT TO ANY ADDITIONAL TERMS, CONDITIONS AND POLICIES APPLICABLE TO SUCH INTEGRATION OFFERINGS (SUCH AS TERMS OF SERVICE OR PRIVACY POLICIES OF THE PROVIDERS OF SUCH INTEGRATION OFFERINGS).

3. Your Use of Offerings and Your Responsibilities

[This Section explains that Liminex licenses our Offerings to you for certain uses. Please use our Offerings responsibly and appropriately.]

3.1 License Grant to You; Restrictions

We hereby grant to you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license and right to use the specific Offering(s) for which you have a Subscription and as set forth in an Order Form and the related User Documentation, during the Subscription Term and solely for School’s internal business purposes.

The rights granted to School in this Agreement are subject to the following restrictions: School shall not (a) license, sell, rent, lease, transfer, reproduce, distribute, host or otherwise commercially exploit any portion of any Offering or User Documentation, or otherwise provide access to any portion of any Offering or User Documentation to any third party (other than Authorized Users, when and as permitted herein); (b) frame or utilize framing techniques to enclose any trademark, logo, or other portion of any Offering (including images, text, page layout or form); (c) use any metatags or other “hidden text” using the names or trademarks of Liminex or any of its Affiliates; (d) modify, translate, adapt, merge, make derivative works of, disassemble, decompile, reverse compile or reverse engineer any part of any Offering or User Documentation; (e) use any manual or automated software, devices or other processes (including but not limited to

spiders, robots, scrapers, crawlers, avatars, data mining tools or the like) to “scrape” or download data from any web pages contained in any Offering or User Documentation; (f) access any Offering or User Documentation in order to build a similar or competitive website, product or service; (g) access any Offering for purposes of monitoring its availability, performance or functionality, or for any other benchmarking or competitive purposes without our prior written permission; and (h) remove any copyright notices or other proprietary markings contained on or in any Offering or User Documentation. Any future release, update or other addition to any Offering shall be subject to this Agreement. We and our suppliers reserve all rights not granted in this Agreement. Any unauthorized use of an Offering terminates your right to use all Offerings.

3.2 School Responsibilities

School will (a) be responsible for its Authorized Users’ compliance with this Agreement (including any applicable Order Form) and the User Documentation; (b) be responsible for the accuracy, quality and legality of School Account Information, and the means by which School acquires School Account Information, Activity Information, Personal Student Information, Parent/Guardian Information, and School Log and Cookie Information and School’s use of any such information; (c) use commercially reasonable efforts to prevent unauthorized access to or use of the Offerings and notify us promptly of any such unauthorized access or use; (d) use the Offerings only in accordance with this Agreement, User Documentation, and all Applicable Law; and (e) comply with the terms of service of any Integration Offering with which School uses an Offering. Any use of an Offering in breach of the foregoing by School or any Authorized User that in our judgment threatens the security, integrity, or availability of an Offering may result in immediate suspension of access to any or all Offerings.

School acknowledges that it is solely responsible for compliance with any legal or policy obligations related to the protection of the well-being of its students and that it understands that certain Offerings are only intended to be a tool to assist School as part of a broader program intended to fulfill any legal or policy obligations, to the extent applicable. For example, the Liminex Parties make no representation or warranty that any of the Offerings, alone or in combination with any other efforts, will be effective in detecting or stopping suicide, violence to self or others, or any other kind of risky behavior by a student of School or any other individual. We are not responsible for, and School expressly waives any claim for liability against the Liminex Parties related to, any student or other individual’s death, illness, bodily injury, disability, emotional distress or other outcome. To the maximum extent permissible by law, such waiver shall extend to any School personnel, student, student family, estate or other third parties. To the extent that any Liminex Party is made a party to any dispute related to any such death, illness, bodily injury, disability, or other outcome, School shall indemnify us in accordance with Section 13, below.

3.3 General Acceptable Use Policy

We need your help to ensure that the Offerings are used safely and appropriately. You agree, represent and warrant that you and your Authorized Users will not use any Offering:

On any computers and/or accounts on which you do not have permission to operate and on which the Offerings cannot be legally and rightfully operated.

To do anything, including posting or otherwise communicating any information that is abusive, harmful, threatening, harassing, libelous, bullying, stalking, or otherwise objectionable.

To do anything unlawful, deceptive, misleading, illegal, unethical, malicious, or discriminatory.

To intentionally violate another person’s privacy rights under Applicable Law.

For commercial purposes (beyond School’s internal business purposes).

To do anything to burden, compromise, or interfere with any Offering, its appearances, security, or functionality.

In any way that jeopardizes the security of your or any other party’s account.

To advertise, solicit, or transmit commercial advertisements, including without limitation, junk e-mail, spam, or any other unsolicited messages regardless of the medium (e.g., email, text, SMS, chat, etc.).

School is responsible for any failure by any Authorized User to comply with this General Acceptable Use Policy.

4. Special Terms for Free, Trial and Beta Offerings

[This Section explains that we may make free, trial, or Beta offerings available for you to test and provide us with Feedback about whether an Offering meets your needs. Because these Offerings are different from paid Subscriptions, there are special terms for them.]

4.1 Free or Trial Subscriptions

If we make an Offering available to you on a free or trial basis, these Offerings shall be subject in all respects to the terms of this Agreement, except that, to the extent permitted by Applicable Law, we (a) may discontinue the Offering or your ability to use it at any time, with or without notice and without any further obligations to you; (b) provide the Offering to you solely "AS IS" without any warranties of any kind; and (c) will have no liability for any harm or damages suffered by you or any third party in connection with the use or inability to use the Offering during the free or trial period.

4.2 Beta Offerings

We sometimes make new Offerings or features within existing Offerings available on a beta basis ("Beta Offerings"). Beta Offerings are generally prerelease or untested products or features. Features or offerings labeled as "alpha," "beta," or "test" within the interface of an Offering are Beta Offerings subject to this Section 4.2. Unless otherwise agreed in writing by us, any Offering or feature provided as a Beta Offering shall be subject in all respects to the terms of this Agreement, except that to the extent permitted by Applicable Law, we (a) may discontinue the Beta Offering or feature or your ability to use it at any time, with or without notice and without any further obligations to you (though we, of course, will endeavor to provide notice of any such disabling whenever reasonably practicable under the circumstances); (b) provide the Beta Offering or feature to you solely "AS IS" without any warranties of any kind; and (c) will have no liability for any harm or damages suffered by you or any third party in connection with the use or inability to use the Beta Offering or feature during the Beta Offering period. Additionally, as consideration for access to and use of any Beta Offering, you agree to (1) treat the Beta Offering as our Confidential Information; and (2) provide regular Feedback about the Beta Offering, if requested.

5. Term, Termination

[This Section explains the duration of this Agreement as well as your and our' obligations after this Agreement ends.]

5.1 Term

Unless terminated earlier in accordance with the terms of this Agreement, the term of this Agreement (the "Term") commences on the Effective Date and continues until all of your Order Forms and Subscription Terms expire.

5.2 Termination

Either party may terminate this Agreement (a) if the other party is in material breach of this Agreement and fails to cure such breach within thirty (30) days after its receipt of written notice thereof or (b) upon thirty (30) days' written notice to the other party. School shall continue to be responsible for all Fees for the terminated Subscription Term and other Fees agreed to in the Order Form except to the extent School terminates this Agreement as a result of our uncured material breach or we terminate this Agreement without cause (i.e., not as a result of School's uncured material breach), in which cases School shall not be obligated to pay for (and shall be entitled to a refund by us of) the Fees allocable to the unused portion of the Subscription Term.

5.3 Effect of Termination or Expiration

Upon termination or expiration of this Agreement, you will have no rights to continue use of (or to provide your Authorized Users with access to) the Offerings or User Documentation, and you immediately will cease accessing and/or using the Offerings and User Documentation, including by, where applicable, erasing and/or uninstalling all downloaded or copied versions of any Offerings and User Documentation, and returning to us or destroying any accompanying User Documentation in your possession or control. The following will survive any expiration or termination of this Agreement: Sections 1.2, 1.3 (for Fees incurred during the Term), 2.3, 3 (except as otherwise set forth therein), 5.2, 5.3, 6, 7, 8, 10, 11, 12, 13, 14, 15, 16, and 17.

6. Intellectual Property

[This Section explains that we ask that you please protect our and others' intellectual property.]

6.1 Ownership

We or our Affiliates (or their licensors) own all right, title and interest in and to the Offerings (including, but not limited to, all photographs, animations, statistics, graphics, text, and any other materials contained therein), the Liminex Information, including, without limitation, all intellectual property rights therein. Subject to the limited rights expressly granted to you under this Agreement, we and our Affiliates reserve all rights, title and interest in and to the Offerings and the Liminex Information, including, without limitation, all related intellectual property rights. The service marks, logos and product and service names of Liminex and its Affiliates (the "Liminex Marks") are owned by Liminex and our Affiliates. You agree not to display or use any Liminex Marks in any manner without our prior written permission. Any trademarks, service marks and logos associated with an Integration Offering may be the property of the third-party provider, and you should consult with their trademark guidelines before using any of their marks.

6.2 Feedback

Any and all of your feedback about us or the Offerings, such as suggestions, whether made by you or any of your Authorized Users, for corrections, updates, alterations, changes, or modifications to the Offerings ("Feedback") are our property and you hereby assign any rights in such Feedback to us, without payment to you.

6.3 Protection of Our Rights

You agree to protect our intellectual property and proprietary rights and any provider of an Integration Offering you access in connection with an Account, and notify us of any unauthorized access or use of the Offerings or Integration Offerings of which you become aware.

7. Confidentiality

[This Section explains that each party must respect each other's Confidential Information.]

As a reminder, our Product Privacy Policy explains our commitment to protecting School Account Information, Personal Student Information, Parent/Guardian Information, Activity Information and/or School Log and Cookie Information, and nothing in this Section 7 limits the parties' respective rights or obligations under the Product Privacy Policy or Section 8, below. A party will not disclose or use any Confidential Information of the other party except: (a) as reasonably necessary to perform its obligations or exercise any rights granted pursuant to this Agreement; (b) with the other party's prior written permission; or (c) to the extent required by Applicable Law or order of a court or other governmental authority or regulation. Each party agrees to protect the other party's Confidential Information in the same manner that it protects its own Confidential Information of like kind, but in no event using less than a commercially reasonable standard of care consistent with Applicable Law. Notwithstanding any exceptions in the definition of Confidential Information, the parties agree to treat all Education Records as Confidential Information and disclosure thereof is allowed only to the extent permitted under FERPA.

8. Privacy and Data

[This Section explains that the parties each have responsibilities to help protect the privacy of data ingested or maintained in the Offerings. The Product Privacy Policy explains, in more detail, how we protect information.]

8.1 Our Privacy Responsibilities

Our Product Privacy Policy, incorporated herein by reference, explains how we collect, use, share, and safeguard School Account Information, Personal Student Information, Parent/Guardian Information, Activity Information and/or School Log and Cookie Information accessed, recorded and collected through the Offerings, including any free, trial or Beta Offerings. Our data collection practices related to our Offerings that utilize artificial intelligence comply with our Product Privacy Policy. We rely on consent obtained from School, acting as an agent of the parent(s) or legal guardian(s) of School's students, as permitted by the Children's Online Privacy Protection Act ("COPPA") for using Offerings in connection with students under thirteen (13) years of age, if any, through a COPPA Notice and Disclosure Form we provide to you. For transparency and informational purposes, we also distribute this COPPA Notice and Disclosure Form to Subscription-purchasing Schools with children of all ages, including ones who do not have students under thirteen (13) years of age. To the extent School is located in the European Union ("EU"), European Economic Area ("EEA"), or Switzerland, our Data Processing Addendum also applies to your use of the Offerings. School hereby authorizes us to use School Account Information in accordance with this Agreement, the Product Privacy Policy and, to the extent applicable, the Data Processing Addendum.

8.2 School Privacy Responsibilities

You represent and warrant that your collection, provision and use of School Account Information, Personal Student Information, Parent/Guardian Information, Activity Information and/or School Log and Cookie Information through and in connection with the Offerings does not violate any Applicable Laws or rights of any third party. Without limiting the foregoing, to the extent you are using the Offerings, you represent and warrant that you have obtained all requisite consent for monitoring and recording information and communications, including the Activity Information. You are solely responsible for notifying the appropriate individuals about the existence of any Offerings on the Managed Devices or Accounts they use and/or in connection with their accounts associated with School's Account and obtaining any required consent from such individuals in accordance with Applicable Law. Even if not required by Applicable Law, we recommend that you notify all users of Managed Devices or Accounts and their respective parents/guardians, teachers, and other appropriate staff about your use of Offerings. More specifically, we recommend that you provide such persons with a copy of our Product Privacy Policy, our COPPA Notice and Disclosure Form, and with respect to GoGuardian Offerings, GoGuardian's form Parental Letter, and any other parental information made available by us.

8.3 Education Records; FERPA

Where School is located in the United States and to the extent we collect, through the provision or maintenance of any Offerings, any information that constitutes an Education Record, the parties agree that we are acting as a "school official" with "legitimate educational interests" in School's students' Education Records under the Family Educational Rights and Privacy Act ("FERPA"), or if applicable, is acting under another applicable FERPA exception listed in under FERPA regulation 34 C.F.R. § 99.31(a)(1), such as the "directory information" exception. School acknowledges and agrees that we may process School Account Information, Personal Student Information, Parent/Guardian Information, Activity Information and/or School Log and Cookie Information for the purpose of providing the Offerings and related functions. Our Product Privacy Policy explains how we cooperate with School under FERPA to fulfill Education Records requests directed from School (or through School from parents/guardians or eligible students). School represents and warrants that it is authorized to process such information, including any Education Records contained therein, and make such information available to us as set out in this Agreement, including the Product Privacy Policy.

8.4 Data-Related Disputes

School is solely responsible for resolving disputes between it and third parties regarding ownership or access to any School Account Information, and any Personal Student Information, Parent/Guardian Information, Activity Information and/or School Log and Cookie Information, including any dispute with any Authorized User, user of a Managed Device or Account, or their families. School acknowledges and agrees that we have no obligation to resolve or intervene in such disputes.

8.5 Disclosure of School Information

You acknowledge, consent, and agree that we may access, preserve, and disclose your School Account Information, Personal Student Information, Parent/Guardian Information, Activity Information and/or School Log and Cookie Information if required to do so by Applicable Law or in a good faith belief that such access, preservation, or disclosure is reasonably necessary to: (a) comply with legal process; (b) to enforce this Agreement, including the Product Privacy Policy; (c) respond to claims that any content violates the rights of third parties; (d) respond to your requests for customer service; or (e) protect the rights, property, or personal safety of us, our users, and/or the public.

9. Alerts and Notifications

This section applies to the GoGuardian Offerings only.

[This Section explains that some GoGuardian Offerings are designed to generate alerts and/or have other notification features, and that, through your settings, you have some ability to control whether to receive certain alerts and/or notifications. It is important for you to understand these features and settings, and to review alerts and notifications carefully and promptly so that you can properly intervene to help students stay safe.]

Some GoGuardian Offerings contain features that generate alerts and/or notifications for the School's and/or a designated Authorized User's review and attention related to a user's activity through a Managed Device or Account. These alerts and notifications are tools designed to help you support and protect the wellbeing of your students and school community. If you receive an alert and/or gain access to any information that triggers a legal obligation, such as a reporting or intervention duty for you (including, for example, an alert from a GoGuardian Offering that one of your students is potentially at risk of suicide), it is your sole responsibility to fulfill that legal obligation and take any additional, responsible actions necessary to safeguard the students in compliance with Applicable Law. In addition, to the extent you elect not to receive one or more types of alerts and/or notifications in your settings, you are solely responsible for that decision. Unless otherwise specified in the Supplemental Terms, we do not review alerts generated through any of the Offerings or take any action based on these alerts or review your settings.

Your escalation and notification list for such alert and/or notification feature in your account for a particular GoGuardian Offering may change from time to time, including because relevant information changes (e.g., changes in contact or relationship information included in School Profile Information, Authorized School Personnel Information, Personal Student Information, Parent/Guardian Information, or Association Information, such as changes in email addresses, the relationship of an Authorized School Personnel or a guardian/parent to a child/student changes, etc.). Without limiting the generality of Section 1.2.2, it is important that you maintain accurate and up-to-date Authorized School Personnel Information, Personal Student Information, Parent/Guardian Information, and Association Information to ensure the appropriateness and timeliness of any alerts and notifications generated through a GoGuardian Offering. It is also important that you remind parents/guardians to update School of any changes, including contact information and guardianship.

Additionally, without limiting the generality of the other terms of this Agreement, if your School uses GoGuardian Beacon or GoGuardian Admin (the Beacon starter function), your School represents and warrants that your School: (a) is solely responsible for having, to the extent required by Applicable Law, an up-to-date and easily available suicide prevention policy; (b) is solely responsible for having, to the extent required by Applicable Law, a necessary suicide prevention program; and (c) your School will notify parents/guardians about your School's adoption of GoGuardian Beacon and educate them about suicide prevention (including, suicide risk factors, warning signs, and resources) before enabling the Parent Notification feature (or similar functionality) of GoGuardian Beacon or GoGuardian Admin (the self harm smart alerts or Beacon starter function).

Further, GoGuardian Beacon, a GoGuardian Offering, sends SMS messages only to users who have opted-in to receive text messages from "Your Beacon Profile" for certain alerts as described above. Only those notifications which have been enabled in the "Staff Notifications" section of the "Alert Preferences" will be sent. You can cancel this SMS service at any time by texting "STOP" to 38121. After you send the SMS message "STOP", we will send you an SMS message to confirm that you have been unsubscribed and you will no longer receive SMS messages from us. You may join again by texting "START" to 38121. If you experience issues with GoGuardian Beacon SMS messages you can text "HELP" to 38121, contact support@goguardian.com, or visit our Help Center. Carriers are not liable for delayed or undelivered messages. Message and data rates may apply for any messages sent to you from GoGuardian. Message frequency is recurring and depends on your GoGuardian Beacon settings, and whether an alert is triggered. Contact your wireless provider with any questions about your text or data plan. If you have any questions regarding privacy, please read our

Product Privacy Policy.

10. Content, Copyright Policies, and Community Galleries

[This Section explains how content is used in certain Offerings and the rights to such content.]

10.1 Content in the Services Generally

You understand that all Content is the sole responsibility of the person from which such Content originated. All such Content that is uploaded into or generated in any Offerings by or on behalf of you or your Authorized Users shall be referred to herein as “Your Content”.

You should be aware that Content, other than Your Content, made available as part of any Offerings, including but not limited to licensed and sponsored-Content, may be protected by intellectual property rights which are owned by the third party that provided that Content to us (or by other persons or companies on their behalf). You may not modify, rent, lease, loan, sell, distribute or create derivative works based on such Content (either in whole or in part) unless you have been specifically told that you may do so by us or by the owners of such Content, in a separate agreement.

We reserve the right (but shall have no obligation) to pre-screen, review, flag, filter, modify, refuse or remove any or all Content, including Your Content, from any Offering. You understand that by using any Offering, you may be exposed to Content that you may find offensive, indecent or objectionable and that, in this respect, you use any Offering at your own risk. You agree that you are solely responsible for (and that neither Liminex nor any Liminex Parties from which you purchased any Offerings have any responsibility to you or to any third party for) any Content that you create, transmit or display while using any Offering and for the consequences of your actions (including any loss or damage which any Liminex Party may suffer) by doing so.

10.2 License to Your Content

You retain copyright and any other rights you already hold in Your Content that you submit, share, upload, post or display on or through, any Offering. Unless otherwise stated in a separate written agreement between Liminex and you, by submitting, sharing, uploading, posting, or displaying Your Content you hereby grant to Liminex and our Affiliates a worldwide, royalty-free, and non-exclusive license to reproduce, adapt, modify, translate, publish, publicly perform, publicly display, and distribute Your Content, solely for the purpose of enabling Liminex and our Affiliates to provide you with any Offering in accordance with the terms of this Agreement, including the Product Privacy Policy.

You understand that, in performing the required technical steps to provide any Offering to our users, we may (a) transmit or distribute Your Content over various public networks and in various media and (b) make such changes to Your Content as are necessary to conform and adapt that Content to the technical requirements of connecting networks, devices, services or media. You agree that this license shall permit us to take these actions.

You confirm and warrant that you have all the rights, power and authority necessary to grant the above license. You agree that you will not submit, share, upload, post or display any Content on or through any Offering that is copyrighted, protected by trade secret or otherwise subject to third-party proprietary rights, including privacy and publicity rights, unless you are the owner of such rights or have permission from their rightful owner to submit, share, upload, post or display such Content and to grant Liminex all of the license rights granted in this Section 10.2.

10.3 Copyright Policies

It is our policy to terminate access privileges of any users who repeatedly infringe copyright(s) embedded or used in connection with our Offerings upon prompt notification to Liminex by the copyright owner or the copyright owner's legal agent. Without limiting the foregoing, if you believe that your work has been copied and posted on or within the Offerings in a way that constitutes copyright infringement, please provide our Copyright Agent with the following information: (a) an electronic or physical signature of the person authorized to act on behalf of the owner of the copyright interest; (b) a description of the copyrighted work that you claim has been infringed; (c) a description of the location on or within the Offerings of the material that you claim is infringing; (d) your address, telephone number and e-mail address; (e) a written statement by you that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent or Applicable Law; and (f) a statement by you, made under penalty of perjury, that the above information in your notice is accurate and that you are the copyright owner or authorized to act on the copyright owner's behalf. Contact information for Liminex's Copyright Agent for notice of claims of copyright infringement is as follows:

Copyright Agent

Liminex, Inc.

8605 Santa Monica Blvd., #996559

West Hollywood, CA 90069-4109

We may remove any Content from the Offering if we believe or have reason to believe such Content infringes the intellectual property rights of a third party. Without prior notice and at any time, in our sole discretion, we reserve the right to remove any Content, disable your ability to share or upload Content through the Offerings, or terminate your access to any Offerings (1) for uploading or sharing such Content in violation of this Agreement or (2) if, under appropriate circumstances, you are determined to be a repeat infringer.

We reserve the right in our sole discretion to decide whether your conduct is inappropriate and whether it complies with this Agreement for violations other than copyright infringement, such as, but not limited to, pornography, obscene or defamatory material, etc. We may terminate your access for such inappropriate conduct in violation of this Agreement at any time and remove any such objectionable Content, without prior notice and at its sole discretion.

10.4 Third-Party Websites and Resources

The Offerings may include hyperlinks to other websites or resources that are controlled, owned or operated by third parties. You acknowledge and agree that we have no control over any such websites or resources and you access and use such websites and resources at your own risk.

Without limiting the foregoing, you acknowledge and agree that neither Liminex, its Affiliates nor any Authorized Reseller are responsible for the availability of any such external sites or resources, and that we do not endorse any advertising, products or other materials on or available from such websites or resources.

You acknowledge and agree that neither Liminex, its Affiliates nor any licensor or Authorized Reseller are liable for any loss or damage which may be incurred by you as a result of the availability of those external sites or resources, or as a result of any reliance placed by you on the completeness, accuracy or existence of any advertising, products or other materials on, or available from, such websites or resources.

10.5 Community Galleries and Gallery Content

Certain Offerings may contain galleries ("Community Galleries"), which may include Content, including templates or questions, supplied by us or third parties, including other users of any Offerings ("Other Content Users"). Community Galleries include any Content, library or gallery that we choose at our discretion to make available to you as part of the Community Galleries (such content, the "Gallery Content"). As between you and the creators of Gallery Content, any intellectual property or proprietary rights remain with the creators.

The Gallery Content: (a) is meant to serve as a suggestion only and (b) is not a substitute for professional advice or specific, authoritative knowledge or direction. We do not promise that the Gallery Content will work for your purposes or that it is free from viruses, bugs, or other defects. The Gallery Content is provided "AS IS" and without warranty of any

kind. You alone bear the risk of using Gallery Content. No Liminex Party provides any express warranties, guarantees and conditions with regard to the Gallery Content. To the extent permitted under Applicable Law, the Liminex Parties expressly disclaim any and all implied warranties and conditions of merchantability, fitness for a particular purpose, workmanlike effort, title and non-infringement.

If you choose to submit Your Content to become part of the Community Galleries (“Your Gallery Submission”), you direct and authorize Liminex and its Affiliates to host, link to, and otherwise incorporate Your Gallery Submission into any Offering, and you hereby grant to Liminex and its Affiliates, and the Other Content Users an irrevocable, perpetual, worldwide, royalty-free, non-exclusive license to: (1) reproduce Your Gallery Submission or any component thereof; (2) create and reproduce derivative works of Your Gallery Submission or any component thereof; or (3) publicly display and distribute copies of Your Gallery Submission or any components or derivatives thereof (“Your Gallery Submission License”).

For the avoidance of doubt, we reserve, and you hereby grant us, the right to syndicate Your Gallery Submission and to use Your Gallery Submission in connection with any of the Offerings. While you may stop distributing Your Gallery Submission through the Community Galleries at any time, doing so will not in any way affect our right or the right of Other Content Users to exercise the rights granted to us as part of Your Gallery Submission License under this Agreement. To stop distributing Your Gallery Submission through the Community Galleries, (i) for Pear Deck, you must send an email to support@deck.peardeck.com, in which case Your Gallery Submission will be removed in accordance with our standard procedures and (ii) for Pear Assessment and Pear Practice, you must delete Your Content or change your sharing level permissions.

You represent and warrant that (x) you own or have obtained the necessary legal rights to provide Your Gallery Submissions and will maintain these rights for as long as Your Gallery Submission is made available to Other Content Users; and (y) all of Your Gallery Submissions abide by this Agreement, including the General Acceptable Use Policy and any other posted policies.

We claim no ownership over any of Your Gallery Submission. You retain copyright and any other rights, including all intellectual property rights, you already hold in Your Gallery Submissions. You agree that you are responsible for protecting and enforcing those rights and that we have no obligation to do so on your behalf.

You agree that you are solely responsible for (and that we have no responsibility to you or to any third party for) any of Your Gallery Submissions that you submit. We are not in any way responsible for the subsequent use or misuse by any Other Content User or other third party who accesses Your Gallery Submission through any Offering or otherwise.

11. App Store-Sourced Application

[This Section explains terms related to accessing and downloading an App Store-Sourced Application.]

11.1 Accessing and Downloading an App Store-Sourced Application from an App Store

You acknowledge that the Agreement is between you and Liminex or one of its Affiliates, and not with the App Store. We, not the App Store, are solely responsible for the Offerings, the content thereof, maintenance, support services, and warranty therefor, and addressing any claims relating thereto (e.g., product liability, legal compliance or intellectual property infringement). You agree to comply with, and your license to use the Offerings is conditioned upon your compliance with all terms of agreement imposed by the applicable App Store when using the Offerings. You acknowledge that the App Store (and its subsidiaries) are third-party beneficiaries of the Agreement and will have the right to enforce it.

11.2 Accessing and Downloading an App Store-Sourced Application from the Apple App Store

11.2.1

You acknowledge and agree that (a) the Agreement is concluded between you and us only, and not Apple, and (b) we, not Apple, are solely responsible for the App Store-Sourced Application and content thereof. Your use of the App Store-Sourced Application must comply with the Apple App Store Terms of Service. You agree to only use an App Store-Sourced Application that is accessed through or downloaded from the Apple App Store (1) on an Apple-branded product that runs the iOS (Apple's proprietary operating system) and (2) as permitted by the "Usage Rules" set forth in the Apple App Store Terms of Service.

11.2.2

You acknowledge that Apple has no obligation whatsoever to furnish any maintenance and support services with respect to the App Store-Sourced Application.

11.2.3

In the event of any failure of the App Store-Sourced Application to conform to any applicable warranty, you may notify Apple, and if applicable, Apple will refund the purchase price for the App Store-Sourced Application to you and to the maximum extent permitted by applicable law, Apple will have no other warranty obligation whatsoever with respect to the App Store-Sourced Application. As between the Liminex Parties and Apple, any other claims, losses, liabilities, damages, costs or expenses attributable to any failure to conform to any warranty will be the sole responsibility of the Liminex Parties.

11.2.4

You and the Liminex Parties acknowledge that, as between the Liminex Parties and Apple, Apple is not responsible for addressing any claims you have or any claims of any third party relating to the App Store-Sourced Application or your possession and use of the App Store-Sourced Application, including, but not limited to: (a) product liability claims; (b) any claim that the App Store-Sourced Application fails to conform to any applicable legal or regulatory requirement; and (c) claims arising under consumer protection or similar legislation.

11.2.5

You and the Liminex Parties acknowledge that, in the event of any third-party claim that the App Store-Sourced Application or your possession and use of that App Store-Sourced Application infringes that third party's intellectual property rights, as between the Liminex Parties and Apple, the Liminex Parties, not Apple, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim.

11.2.6

The parties acknowledge and agree that Apple, and Apple's subsidiaries, are third-party beneficiaries of the Agreement as related to your license of the App Store-Sourced Application, and that, upon your acceptance of the terms and conditions of the Agreement, Apple will have the right (and will be deemed to have accepted the right) to enforce the Agreement as related to your license of the App Store-Sourced Application against you as a third-party beneficiary thereof.

11.2.7

Without limiting any other terms of the Agreement, you must comply with all applicable third-party terms of agreement when using the App Store-Sourced Application.

12. Warranties, Disclaimer, and Release

[This Section explains that we strive to provide you with our Offerings with a certain level of skill and care, but we cannot promise that our Offerings are perfect.]

We provide the Offerings using a commercially reasonable level of skill and care, but we cannot make guarantees about the operation, use or results achieved through the use of the Offerings. ACCORDINGLY, TO THE FULLEST EXTENT

PERMISSIBLE UNDER APPLICABLE LAW, EACH OFFERING IS PROVIDED ON AN “AS-IS” AND “AS-AVAILABLE” BASIS, WITH ALL FAULTS, WITHOUT WARRANTY OF ANY KIND, AND SCHOOL’S USE IS AT ITS SOLE RISK. THE ENTIRE RISK OF SATISFACTORY QUALITY AND PERFORMANCE RESIDES WITH SCHOOL. THE LIMINEX PARTIES MAKE NO REPRESENTATIONS OR WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, AND HEREBY SPECIFICALLY DISCLAIM ALL IMPLIED WARRANTIES, INCLUDING WITHOUT LIMITATION ALL WARRANTIES OR CONDITIONS OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, ACCURACY, OR NON-INFRINGEMENT. THE LIMINEX PARTIES MAKE NO WARRANTY THAT ANY OFFERINGS WILL MEET SCHOOL’S REQUIREMENTS, WILL BE AVAILABLE ON AN UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE BASIS, OR WILL BE ACCURATE, RELIABLE, FREE OF VIRUSES OR OTHER HARMFUL CODE, COMPLETE, LEGAL, OR SAFE. SCHOOL IS SOLELY RESPONSIBLE FOR THE SCHOOL ACCOUNT INFORMATION, THE MEANS BY WHICH SCHOOL ACQUIRES SCHOOL ACCOUNT INFORMATION, ACTIVITY INFORMATION, PERSONAL STUDENT INFORMATION, PARENT/GUARDIAN INFORMATION, AND SCHOOL LOG AND COOKIE INFORMATION, AND ALL COMMUNICATIONS AND INTERACTIONS BASED ON THE OFFERINGS, INCLUDING ANY AUTOMATICALLY GENERATED ALERTS THAT SCHOOL MAY RECEIVE. WE ARE NOT A MEDICAL HEALTHCARE PROVIDER. SCHOOL UNDERSTANDS AND AGREES THAT LIMINEX AND THE OTHER LIMINEX PARTIES ARE UNDER NO OBLIGATION OTHER THAN TO PROVIDE THE OFFERINGS TO SCHOOL IN ACCORDANCE WITH THE TERMS OF THIS AGREEMENT.

SCHOOL HEREBY RELEASES EACH OF THE LIMINEX PARTIES AND THEIR RESPECTIVE SUCCESSORS IN RIGHTS FROM ANY CLAIMS, DAMAGES, AND DEMANDS OF EVERY KIND ARISING OUT OF OR IN ANY WAY RELATED TO ANY CLAIMS MADE BY SCHOOL, ANY AUTHORIZED USER, ANY USER OF A MANAGED DEVICE OR ACCOUNT OR THEIR FAMILIES. IF APPLICABLE LAW REQUIRES ANY WARRANTIES WITH RESPECT TO ANY OFFERING, ALL SUCH WARRANTIES ARE LIMITED IN DURATION TO NINETY (90) DAYS FROM THE DATE OF FIRST USE. SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF IMPLIED WARRANTIES OR HOW LONG AN IMPLIED WARRANTY LASTS, SO THE ABOVE EXCLUSION AND/OR LIMITATION MAY NOT APPLY TO SCHOOL. NOTHING IN THIS AGREEMENT EXCLUDES, RESTRICTS OR MODIFIES ANY GUARANTEE, WARRANTY, TERM OR CONDITION, RIGHT OR REMEDY IMPLIED OR IMPOSED BY ANY APPLICABLE LAW WHICH CANNOT LAWFULLY BE EXCLUDED, RESTRICTED OR MODIFIED.

13. Indemnification

[This Section explains your responsibility to indemnify us in certain circumstances.]

School agrees, to the extent permitted by Applicable Law (and in the United States, the School’s state laws), to indemnify, defend and hold Liminex and the other Liminex Parties harmless from any losses, costs, liabilities and expenses (including reasonable attorneys’ fees) relating to or arising from (a) School’s failure to receive any consents or provide any notices required to be received or provided under Applicable Law in respect of all users of Managed Devices or Accounts, including for the monitoring and recording of Activity Information in connection therewith; (b) errors in the School Account Information, Parent/Guardian Information, Personal Student Information, and School’s selection of settings in the Offerings and maintenance of Authorized User accounts and their permission levels; (c) School’s acts or omissions relating to or regarding alerts generated through the Offerings, including GoGuardian Beacon or GoGuardian Admin; (d) School’s failure to comply with Applicable Laws, including Applicable Mental Health Laws; (e) School’s violation of any rights of another party, including any users of Managed Devices or Accounts, (f) Your Content that you submit, share, upload, post or display on or to any Offering; (g) any use by other users of the Offerings of Your Content; and (h) any claim that Your Content violates any Applicable Laws or that it violates or infringes the rights of any third party. We reserve the right, at our own expense, to assume the exclusive defense and control of any third-party claims for which we are entitled indemnification under this Section 13, and, in any event, School agrees to cooperate with us in asserting any and available defenses.

14. Limitations and Exclusions of Liability

[This Section explains important limitations on our potential liability to you, including the maximum amount for which we may be liable to you.]

14.1 Disclaimer of Certain Damages

TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL LIMINEX OR ANY OTHER LIMINEX PARTY BE LIABLE TO SCHOOL OR ANY THIRD PARTY FOR PERSONAL INJURY, PROPERTY DAMAGE, ANY LOST PROFITS, LOST DATA OR INFORMATION, COSTS OF PROCUREMENT OF SUBSTITUTE PRODUCTS, LOSS OF GOODWILL, WORK STOPPAGE, COMPUTER OR DEVICE FAILURE OR MALFUNCTION, OR ANY INDIRECT, CONSEQUENTIAL, EXEMPLARY, INCIDENTAL, SPECIAL OR PUNITIVE DAMAGES ARISING FROM OR RELATING TO THIS AGREEMENT OR SCHOOL'S USE OF, OR INABILITY TO USE, ANY OFFERING, EVEN IF LIMINEX OR THE OTHER LIMINEX PARTIES HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. ACCESS TO, AND USE OF, THE OFFERINGS IS AT SCHOOL'S OWN DISCRETION AND RISK, AND SCHOOL WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO ANY DEVICES OR COMPUTER SYSTEMS USED TO ACCESS OR USE ANY OFFERING, OR LOSS OF DATA OR INFORMATION RESULTING THEREFROM.

14.2 Cap on Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN, THE AGGREGATE LIABILITY OF LIMINEX AND ANY OTHER LIMINEX PARTIES FOR ANY DAMAGES ARISING FROM OR RELATING TO THIS AGREEMENT OR SCHOOL'S USE OR INABILITY TO USE AN OFFERING (WHETHER ORDERED DIRECTLY FROM A LIMINEX PARTY OR THROUGH AN AUTHORIZED RESELLER) FOR ANY CAUSE WHATSOEVER, AND UNDER ANY LEGAL THEORY, INCLUDING NEGLIGENCE, TORT OR STRICT LIABILITY, AND REGARDLESS OF THE FORM OF THE ACTION, WILL AT ALL TIMES BE LIMITED TO THE FEES ACTUALLY PAID BY SCHOOL (WHETHER TO A LIMINEX PARTY OR AN AUTHORIZED RESELLER) FOR THE OFFERING GIVING RISE TO SUCH CLAIM FOR THE CALENDAR YEAR IN WHICH SUCH CLAIM AROSE. THE EXISTENCE OF MORE THAN ONE CLAIM WILL NOT ENLARGE THIS LIMIT. SCHOOL AGREES THAT OUR LICENSORS AND SUPPLIERS WILL HAVE NO LIABILITY OF ANY KIND ARISING FROM OR RELATING TO THIS AGREEMENT. SOME JURISDICTIONS DO NOT ALLOW THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES OR LIABILITY FOR DEATH OR PERSONAL INJURY, SO THE ABOVE LIMITATIONS OR EXCLUSIONS MAY NOT APPLY TO SCHOOL.

14.3 Basis of the Bargain

THE LIMITATIONS OF DAMAGES SET FORTH ABOVE ARE FUNDAMENTAL ELEMENTS OF THE BASIS OF THE BARGAIN BETWEEN US AND YOU.

15. Governing Law and Dispute Resolution

[This Section explains how any disputes between us and you will be handled, including the type of dispute resolution that will be used and what law applies.]

15.1 Governing Law and Venue

This Agreement and any dispute arising from or relating to this Agreement are governed by the laws of the state of California, United States, without regard to its conflict of law principles. You further agree to accept service of process by mail. To the extent the parties are permitted under this Agreement to initiate litigation in court, the parties consent to exclusive personal jurisdiction and venue in the courts located in Los Angeles County, California. If School is a United States public and accredited educational institution, domiciled in a state within the United States that expressly requires a different choice of law other than California law, then School's state's law will apply. If School is a United States public and accredited educational institution domiciled in a state within the United States that expressly requires venue or jurisdiction of a different state, then School's state's required venue and jurisdiction will apply.

15.2 Dispute Resolution; Binding Arbitration; Class Action Waiver ("Arbitration Agreement")

In the event of a dispute, claim, or controversy arising out of or relating to this Agreement, any Offering, any person's access to and/or use of the Offering, and/or the provision of content, features, and/or technology on or through the Offering (collectively, "Claims"), the parties must first give the other notice of the Claim. This notice must include a brief written statement with the name, address, and contact information of the party giving it, as well as the facts giving rise to the Claim and the relief requested. You must send any such notice to Liminex by email to legal@goguardian.com AND by U.S. Mail to Liminex, 8605 Santa Monica Blvd., #996559, West Hollywood, CA, 90069-4109. If we have your contact information, we will send any such notice to you by U.S. Mail and your email address.

The parties shall use reasonable, good faith efforts to resolve any Claim through consultation and good faith negotiations within thirty (30) days from the date that any notice of a Claim is sent. After thirty (30) days, you or we may resort to the other alternatives described in Section 15.2.1. Notwithstanding the foregoing, the notice requirement in this section and the 30-day negotiation period required shall not apply to Claims involving patents, copyrights, moral rights, trademarks, trade secrets or piracy or unauthorized use of an Offering.

15.2.1 Binding Arbitration

Arbitration Rules and Forum: Except as otherwise specifically set forth below, any Claims between you and us, if unresolved through informal consultation and negotiation pursuant to the preceding paragraph, shall be resolved by binding arbitration to be held in Los Angeles, California. Notwithstanding the foregoing, if School is a United States public and accredited educational institution domiciled in a state within the United States that expressly requires a different location for arbitration other than Los Angeles, California, then School's state's required location for binding arbitration will apply. If School that is a United States public and accredited educational institution and your consent to binding arbitration is expressly prohibited by the laws of the state within the United States in which School's educational institution is domiciled, then this Section 15.2.1 is hereby waived. The Federal Arbitration Act governs the interpretation and enforcement of this Arbitration Agreement. The arbitration shall be conducted by a single arbitrator, governed by JAMS pursuant to its Comprehensive Arbitration Rules & Procedures (collectively, "JAMS Rules"), as modified by this Agreement, and administered by JAMS. The JAMS Rules and fee information are available at www.jamsadr.org or by calling JAMS at 1-800-352-5267. The arbitrator shall have exclusive authority to (a) determine the scope and enforceability of this Arbitration Agreement, and (b) resolve any dispute related to the interpretation, applicability, enforceability or formation of this Arbitration Agreement including, but not limited to, any claim that all or any part of this Arbitration Agreement is void or voidable. The arbitrator will decide the rights and liabilities, if any, of each party. The arbitration proceeding will not be consolidated with any other matters or joined with any other cases or parties.

Exceptions: Litigation of Intellectual Property and Small Claims Court Claims concerning patents, copyrights, moral rights, trademarks, and trade secrets, and Claims of piracy or unauthorized use of any Offering shall not be subject to arbitration under this Section 15.2.1. In addition, the parties may choose to pursue a Claim in small claims court where jurisdiction and venue over the parties otherwise qualify for such small claims court and where the Claim does not include a request for any type of equitable relief.

Batch Arbitration: Notwithstanding this Section 15.2.1, to increase the efficiency of administration and resolution of arbitrations, you and Liminex agree that, in the event there are ten (10) or more individual Claims of a substantially similar nature (i.e., Claims that arise out of or relate to the same or similar facts and raise the same or similar legal issues and requests for relief) filed against Liminex by or with the assistance of the same law firm, group of law firms, or organizations, within a ninety (90) day period, JAMS shall (1) administer the arbitration demands in batches of 100 Claims per batch (or, if between ten (10) and ninety-nine (99) individual Disputes are filed, a single batch of all those Claims, and, to the extent there are less than 100 Claims remaining after the batching described above, a final batch consisting of the remaining Claims); (2) appoint one arbitrator for each batch; and (3) provide for the resolution of each batch as a single consolidated arbitration with one set of filing and administrative fees due per side per batch, one procedural calendar, one hearing (if any) in a place to be determined by the arbitrator, and one final award ("Batch Arbitration"). If there is any dispute about the applicability of these Batch Arbitration procedures, JAMS shall appoint a single administrative arbitrator to determine the applicability of the Batch Arbitration process.

Authority of Arbitrator: In binding arbitration, the arbitrator shall have the authority (i) to grant motions dispositive of all or part of any Claim; (ii) to award monetary damages; and (iii) to grant any non-monetary remedy or relief available to an individual under Applicable Law, the arbitral forum's rules, and this Agreement (including the Arbitration Agreement).

The arbitrator shall issue a written award and statement of decision describing the essential findings and conclusions on which the award is based, including the calculation of any damages awarded. The arbitrator has the same authority to award relief on an individual basis that a judge in a court of law would have. The award of the arbitrator is final and binding upon you and us.

Confidentiality: All aspects of the arbitration proceeding, including but not limited to the award of the arbitrator and compliance therewith, shall be strictly confidential. Both parties agree to maintain confidentiality unless otherwise required by law. This paragraph shall not prevent either party from submitting to a court of law any information necessary to enforce this Agreement, to enforce an arbitration award, or to seek injunctive or equitable relief.

15.2.2 Class Action Waiver

THE PARTIES HEREBY WAIVE ANY CONSTITUTIONAL AND STATUTORY RIGHTS TO SUE IN COURT AND HAVE A TRIAL IN FRONT OF A JUDGE OR A JURY. The parties are instead electing that all Claims not otherwise resolved informally as permitted above shall be resolved by arbitration under this Arbitration Agreement. An arbitrator can award on an individual basis the same damages and relief as a court and must follow this Agreement as a court would. However, there is no judge or jury in arbitration, and court review of an arbitration award is subject to very limited review.

16. Miscellaneous

[This Section includes miscellaneous legal provisions such as when and how we can make changes to this Agreement, how notice and other communications can be given under this Agreement, etc.]

16.1 Changes to this Agreement

Before we make a material change to this Agreement, we will notify you as described in this Section 16.1. We may make immaterial changes (e.g., correcting a typographical error or another immaterial change) without notifying you. Please regularly review our Website and your Account for any changes. On our Website, we provide notice of any changes by posting the updated Agreement with a “Last Updated” date indicating the date of our most recent update. If we make material changes to this Agreement, we will also take an additional step (beyond posting on our Website) of notifying you of changes in another way that we believe is reasonably likely to reach you, such as emailing you at your email address associated with your Account, posting an announcement on our Website, or via a pop up in our Offering. Some changes may require your consent before further use of the Offerings is permitted. If you do not agree to any change(s), you agree to stop using the Offerings, and email us at terms@goguardian.com. Otherwise, your continued use of the Offerings after a change made in accordance with this provision constitutes your acceptance of such change(s).

16.2 Entire Agreement

This Agreement, including any applicable Order Forms and any terms and policies that are incorporated into this Agreement by reference (including by reference to a URL), including any applicable Supplemental Terms, constitutes the entire agreement between you and the Liminex Parties with respect to the subject matter hereof and supersedes all prior agreements between you and the Liminex Parties and any other contractual obligations any Liminex Party or you may have to the other, whether written or oral, relating to the same subject matter. We reject additional or conflicting terms of School’s form-purchasing document you provide to us in connection with your procurement of access to any Offering. The headings of this Agreement are for readability only and do not constitute terms.

16.3 Language

You agree that this Agreement and all related documents shall be drawn up in the English language.

16.4 Severability

If any provision of this Agreement is invalid or unenforceable, such provision will be changed and interpreted to accomplish the objectives of such provision to the greatest extent possible under Applicable Law and the remaining provisions will continue in full force and effect.

16.5 Force Majeure

Our failure to comply with any provision of this Agreement due to an act of God, hurricane, war, fire, riot, earthquake, terrorism, act of public enemy, actions of governmental authorities outside of our control (excepting compliance with applicable codes and regulations), or other force majeure event will not be considered a breach of this Agreement.

16.6 No Third-Party Beneficiaries

You agree that, except as otherwise expressly provided in this Agreement, there shall be no third-party beneficiaries to this Agreement.

16.7 Electronic Communications

The communications between you and Liminex or its Affiliates may take place via electronic means, whether you use an Offering or send us e-mails, or whether we post notices on or through any Offering or communicate with you via e-mail. For contractual purposes, you (a) consent to receive communications from us in an electronic form and (b) agree that all terms and conditions, agreements, notices, disclosures, and other communications that we provide to you electronically satisfy any legal requirement that such communications would satisfy if it were to be in writing. The foregoing does not affect your statutory rights.

16.8 Assignment

This Agreement, and your rights and obligations hereunder, may not be assigned, subcontracted, delegated or otherwise transferred by you without our prior written consent, and any attempted assignment, subcontract, delegation, or transfer in violation of the foregoing will be null and void. Subject to the foregoing, this Agreement shall bind and inure to the benefit of the parties, their respective successors and permitted assigns.

16.9 Notice

Where we require that you or any Authorized Users provide an e-mail address, you are responsible for ensuring that we are provided with the most current e-mail address for the designated Authorized User. In the event that the last e-mail address provided to us is not valid, or for any reason is not capable of receiving any notices required or permitted by this Agreement, our dispatch of the e-mail containing such notice to such address will nonetheless constitute effective notice. You may give notice to us at the following address: 8605 Santa Monica Blvd., #996559, West Hollywood, CA, 90069-4109. Such notice shall be deemed given when received by us by letter delivered by nationally recognized overnight delivery service or first class postage prepaid mail at the above address.

16.10 Waiver

Any waiver or failure to enforce any provision of this Agreement on one occasion will not be deemed a waiver of any other provision or of such provision on any other occasion.

16.11 Export Control

You may not use, export, import, or transfer any Offering except as authorized by U.S. law, the laws of the jurisdiction in which you obtained the Offering, and any other Applicable Laws. By using any Offering, you represent and warrant that (a) you are not located in a country that is subject to a U.S. Government embargo, or that has been designated by the U.S. Government as a “terrorist supporting” country and (b) you are not listed on any U.S. Government list of prohibited or restricted parties. You will not permit any Authorized User to access or use any Offering, or deploy any Offering on any device or account, in a U.S.-embargoed country or region or in violation of any U.S. export law or regulation.

16.12 Publicity

Liminex may publicly identify you as a customer of Liminex and use your name, logo, and/or trademarks in any of its advertising or marketing materials.

17. Definitions

[This Section provides definitions for certain capitalized terms that are not defined elsewhere in the Agreement.]

For the purposes of this Agreement, the following capitalized terms will have the meanings set forth for each of them below:

“Account” means an account created by or on behalf of School that is associated with one or more Offerings for which School has a Subscription, which is then used by School to manage access and use of the Offering(s) by School and its Authorized Users.

“Activity Information” means information about online account and activity collected at the Authorized User level in connection with Managed Devices or Accounts, including (depending on the Offering) chats (e.g., within GoGuardian Teacher); a student’s browsing history; IP address; online content; screenshots; key input patterns (but not the actual inputs) to identify behaviors like gaming; information about the student’s activity within a presentation or session, including engagement with and any student content generated in the session (e.g. within Pear Deck or Pear Practice); and Your Content that is uploaded into or generated in any Offerings. Activity Information may include free text, multiple choice answers, drawings, or URLs. For Pear Assessment, information from or about any activity when an Authorized User is logged on, including audio recordings in an assessment may be collected.

“Add-On” means any additional license to an Offering, beyond the original Licensed Capacity purchased, the parties agree to add to School’s Subscription during a Subscription Term.

“Affiliate” means any entity that directly or indirectly controls, is controlled by, or is under common control with a party. “Control” for purposes of this definition means the power to direct or cause the direction of the management and policies of the subject entity, whether through equity ownership, a credit arrangement, franchise agreement or other contractual arrangement.

“Applicable Law” means any applicable federal and state laws, rules and regulations, applicable to the parties and/or the Offerings, including but not limited to the FERPA, and the Applicable Mental Health Laws.

“Applicable Mental Health Law” means any federal and state laws, rules and regulations applicable to School’s suicide and self-harm program and use of GoGuardian Beacon or GoGuardian Admin (self-harm smart alerts and/or Beacon Starter), including Applicable Law mandating staff training, certain suicide staff roles such as suicide prevention coordinators, and school prevention, intervention, and post-intervention policies.

“Association Information” means information associating a particular student or other user of a Managed Device or Account to a particular Managed Device or Account, as well as information about associations between any such user of a Managed Device or Account with School, an organizational unit or other grouping within the school (e.g., grade, class, cohort), a parent or guardian or a school official or Authorized School Personnel. Association Information does not include Activity Information.

“Authorized Reseller” means an entity authorized by Liminex or one of its Affiliates to sell Subscriptions to one or more Offerings under the terms of this Agreement and with which School has contracted directly to purchase the Offerings.

“Authorized School Personnel” means an Authorized User who is an employee, teacher, or official of a School or a School’s district.

“Authorized School Personnel Information” means information about Authorized School Personnel, including permission levels associated with the Authorized School Personnel, chat messages between students and teachers using an Offering, such as GoGuardian Teacher, unique account identifiers generated by us, and other relevant unique identifiers.

“Authorized User” means an individual who is authorized by School to use an Offering, for whom School has purchased or provisioned a Subscription, and to whom School (or, when applicable, Liminex or one of its Affiliates, at School’s request) has supplied access credentials (for Offerings utilizing authentication). Authorized Users include, for example, Authorized School Personnel and agents and third parties such as students and parents/guardians.

“Confidential Information” means (a) any software utilized by us in the provision of any Offering and its respective source code; (b) each party’s business or technical information, including but not limited to the User Documentation, information relating to software plans, designs, costs, prices and names, business opportunities, personnel, research, development or know-how that is designated by the disclosing party as “confidential” or “proprietary” or the receiving party knows or should reasonably know is confidential or proprietary; and (c) any special pricing or other non-standard terms agreed to by the parties in an Order Form or other separate written document. Confidential Information will not include any information that: (1) is or becomes generally known to the public without breach of any obligation owed to the disclosing party; (2) was known to a party prior to its disclosure by the other party without breach of any obligation owed to the other party; (3) was independently developed by a party without breach of any obligation owed to the other party; or (4) was or is received from a third party without breach of any obligation owed to the other party.

“Content” means all information (such as data files, fonts, written text, computer software, music, audio files, image files or other sounds, photographs, videos or other images) which you may have access to as part of, or through your use of, any Offerings.

“De-Identified Information” means aggregated and anonymized data which may be derived from School Account Information, Personal Student Information, Parent/Guardian Information, School Log and Cookie Information, or Activity Information; provided such De-Identified Information cannot reasonably be used to identify any Authorized User, user of a Managed Device or Account, or any other individual.

“Education Records” means “education records” as defined under the FERPA regulation 34 CFR § 99.3.

“Effective Date” means the earlier of the date you first use an Offering or otherwise enter into this Agreement.

“GoGuardian Offering(s)” means Liminex’s suite of products and services, including Professional Services, provided under the GoGuardian brand, other than the Websites.

“Licensed Capacity” means the number of licenses to an Offering covered by a Subscription during a Subscription Term (e.g., depending on the particular offering and licensing model indicated on the Order Form, the number of accounts, authorized devices, installations, or seats).

“Liminex Information” means (a) all De-Identified Information; and (b) any information collected by Liminex or its Affiliates independently and without access to, reference to or use of any School Account Information, Personal Student Information, Parent/Guardian Information, School Log and Cookie Information, or Activity Information.

“Liminex Parties” means Liminex, its Affiliates, including Pear Deck Inc. and Snapwiz Inc., and each of their respective licensors, suppliers, officers, directors, employees, shareholders, agents and representatives.

“Managed Device(s) or Account(s)” means any device and/or account of a student or user for which School deploys or installs an Offering or seeks participation from an Offering for such purpose in accordance with the terms of this Agreement.

“Offering” means any product or service, including Professional Services, made available by Liminex or its Affiliates, including the GoGuardian Offerings and the Pear Deck Learning Offerings.

“Order Form” means a written or online ordering document, communication, form, statement of work, or other documentation that specifies the Offering(s) to be provided and which is either executed or submitted by you, and then accepted by Liminex, one of its Affiliates or one of their Authorized Resellers. Each Order Form identifies the purchased Offering(s), any applicable Fees, and, for licensed products and services, the Subscription Term and Licensed Capacity, as well as any other terms as agreed to between the parties.

“Parent/Guardian Information” means any data or information provided, submitted, or made available in an Offering about a parent or guardian of a student user of a Managed Device or Account, including the individual’s association with a particular child and his or her contact information (e.g., email address).

“Pear Deck Learning Offering(s)” means Liminex’s suite of products and services, including Professional Services, provided under the Pear Deck Learning brand, other than the Websites.

“Personal Student Information” means information provided, submitted, or made available in an Offering about a student user of a Managed Device or Account (including, the student’s School-managed account information, Activity Information, grade and attendance data, and location information to the extent collected) that may, alone or in combination with other available information, be reasonably used to identify a current or former student enrolled in a School, including Education Records.

“Professional Services” means any supplemental technical, training, support, consulting or implementation services that Liminex or one of its Affiliates provides to you, as set forth in an Order Form. Any purchased Professional Services, whether provisioned in connection with or support of another Offering, shall be deemed an Offering hereunder.

“School” means the school, school district, corporation, organization, college, university, or other legal entity identified on an Order Form on whose behalf the individual accepts this Agreement, and any Affiliates of that school, school district, corporation, organization, college, university, or other legal entity have entered into Order Form(s) (for so long as they remain Affiliates).

“School Account Information” means School Profile Information, Authorized School Personnel Information, and Association Information.

“School Affiliate” means any Affiliate of School that has been designated in an Order Form as authorized to access the Offerings under this Agreement.

“School Log and Cookie Information” means analytics, log and event information, such as IP address, internet service provider, date and time stamp, browser language, browser type, amount of time spent on particular portions of the Offerings, service diagnostics and technical logging information, device information, and/or other general usage data, automatically collected by or on behalf of Liminex or an Affiliate.

“School Profile Information” means the name, email address, and phone number of the individual ordering the Offering on School’s behalf, as well as the School’s name, address, billing address, of the School or Authorized User, as applicable, the number of devices, number of students, and network configuration, and to the extent an Account is created for School, the password created for such Account.

“Subscription” means a time-limited right granted to School to access and use one or more licenses to an Offering under the terms of this Agreement.

“Subscription Term” means the period of time for which you subscribe (whether through a standard license or as part of a trial or beta license) to a particular Offering, as specified in an Order Form or elsewhere. For the avoidance of doubt, “Subscription Term” includes the initial Subscription Term agreed to in any Order Form and any subsequent renewal Subscription Term under that or another Order Form.

“User Documentation” means the online user guides, documentation, and help and training materials we make accessible, including at our Help Center or such other URL we identify from time to time, and any other materials we provide as part of the Offerings, all as may be updated from time to time.

“Website(s)” means the websites of Liminex or any of its Affiliates made available online to the public that are not Offerings.

Jump to a Section

Text Link

Policies

COPPA Disclosure & Consent Form

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https://www.peardeck.com/policies/website-terms-of-service

Webpage text snapshot | Retrieved 10 October 2026

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Website Terms of Service

Pear Deck Learning Website Terms of Service

Last Updated: May 8, 2026

Introduction

Welcome! This Terms of Service ("Website Terms") is a legal agreement between you and Liminex, Inc. doing business as GoGuardian and Pear Deck Learning, and acting on behalf of itself and its Affiliates (collectively, “Liminex”, “GoGuardian”, “we”, “us”, or “our”). The Website Terms governs your access and use of our websites with the main pages located at goguardian.com and peardeck.com (each, the "Website"). You acknowledge and agree that, by accessing or in any way using the Website, you are indicating that you have read, understand, and agree to be bound by these Website Terms, as well as our Website Privacy Policy (incorporated herein by reference). If you do not agree to these Website Terms, then you may not access or use our Website.

In the case of a conflict between the Website Terms and the terms of any other electronic or machine-readable statement or policy, the Website Terms shall control, except for any agreement governing the use of a product or service in which the user agrees to or is presented with a different governing agreement, such as our Liminex Products Terms of Service and End User License Agreement for our products or other agreement. In such case, this other agreement shall control.

You are responsible for regularly reviewing this page of our Website for updates to these terms, which is detailed further below in Section 11.

1. Eligibility and Registration for Our Website

To obtain more information about our products and services, you may be required to signup or register on the Website, and/or be asked to provide certain information about yourself. You must be at least eighteen (18) years of age to use the Website. By signing up or providing such information, you acknowledge and agree that you are over eighteen (18) years of age, and that the information you have provided is true, accurate, and complete as of the date you provide such information, and that you will promptly update your information, should it change.

During the registration process, you may be required to provide an email address and/or create a password, such as to use certain features or to subscribe to our blog. It is your responsibility to keep your password confidential. You agree that you will not allow others to use your account and that you are fully responsible for all activities that occur under your account. You agree to notify us immediately at terms@goguardian.com in the event of unauthorized use of your password or account, or of any other breach of security relating to your account. We are not liable for any loss or damage resulting from your failure to maintain the confidentiality of your account. We may assume that any communications from your account have been made by you.

As a result of submitting or requesting information about our products, you may receive certain commercial communications from us. You understand and agree to receive these communications. You may opt out of receiving these communications at any time by either using the unsubscribe functionality in such communications or by sending an email to unsubscribe@goguardian.com.

2. Our Proprietary Rights

The Website is owned and operated by Liminex and contains material, which is derived in whole or in part from material supplied by Liminex and its affiliates, subsidiaries, and partners, and other sources. Such materials are protected by United States copyright laws, international treaty provisions, trademarks, service marks, and other intellectual property laws. The Website is also protected as a collective work or compilation under U.S. copyright and other applicable law and treaties. You agree to abide by all applicable copyright and other intellectual property laws, as well as any additional copyright notices or restrictions contained in the Website.

All present and future rights in and to trade secrets, patents, copyrights, trademarks, service marks, know-how, and other proprietary rights of any type under the laws of any governmental authority, domestic or foreign, including rights in and to all applications and registrations relating to the Website shall, as between you and us, at all times be and remain the sole and exclusive property of Liminex. You agree to protect the proprietary rights of Liminex and all others having rights in the Website during and after the term of these Website Terms. You further agree to comply with all reasonable written requests made by us, our suppliers, and/or licensors of content or otherwise to protect their and others' contractual, statutory, and common law rights in the Website. You agree to notify us immediately at terms@goguardian.com upon becoming aware of any unauthorized access or use of the Website by any individual or entity or of any claim that the Website infringes upon any copyright, trademark, or other intellectual property rights.

You may not use any of our trademarks, trade names, service marks, copyrights, or logos in any manner that creates the impression that such items belong to or are associated with you or, except as otherwise provided herein, are used with our written consent. You also acknowledge that you have no ownership rights in or to any such items.

You may not modify, copy, reproduce, republish, upload, post, transmit, or in any way distribute material from the Website, including content, code, and software (collectively, "Material") unless specifically granted written permission to do so by us. If you would like permission to distribute content from our Website, please contact us at marketing@goguardian.com. We have the right but not the obligation to make changes and updates to any Material without prior notice.

3. User Content

Our Website may enable you to submit, post, upload, or otherwise make available (collectively, "post") content such as public messages, ideas, comments, and other content (collectively, "User Content") that may or may not be viewable by other users. For example, you may submit User Content through the GoGuardian Blog. You acknowledge and agree that all User Content, whether publicly posted or privately transmitted, is the sole responsibility of the person from whom the User Content originated. You further agree that you have all required rights to submit, post, upload, disseminate, or otherwise use such User Content without violation of any third-party rights.

When you submit User Content on or through your use of any of the Website, you grant us a world-wide, perpetual, irrevocable, royalty-free, non-exclusive, and sub-licenseable license to use, copy, distribute, reproduce, modify, edit, adapt, publicly perform, publicly display, translate, create derivative works from, and publish such User Content, in whole or in part, in any current or future-developed format or medium, including (without limitation) for promoting and redistributing part or all of the Website (and derivative works thereof) in any media formats and through any media channels. All of your suggestions for correction, change, or modification to the Website will be the property of Liminex and you hereby assign any rights in such feedback to us, without payment to you.

You represent and warrant that you own or otherwise control all rights to any User Content that you post on or through the Website. You agree that you will indemnify, defend, and hold harmless Liminex for all claims resulting from User Content you post. We reserve the right, at our own expense, to assume the exclusive defense and control of such disputes, and in any event, you will cooperate with us in asserting any available defenses.

You acknowledge and agree that we and our designees may or may not, at our discretion, screen User Content before or after its appearance on the Website, but that we have no obligation to do so. You further acknowledge and agree that we reserve the right, in our sole discretion, to reject, move, edit, or remove any User Content that is contributed to the Website, but we do not assume the obligation. Without limiting the foregoing, we and our designees shall have the right, in our sole discretion, to delete any User Content that violates these Website Terms or is otherwise objectionable, or for any reason whatsoever or for no reason. You acknowledge and agree that we do not verify, adopt, ratify, or sanction User Content, and you agree that you must evaluate and bear all risks associated with your use of or your reliance on the accuracy, completeness, or usefulness of User Content. You also understand that you may be exposed on the

Website to User Content that you may consider offensive or objectionable.

4. Links

The Website may provide links to third party websites or resources. You acknowledge and agree that we are not responsible for the availability of such external sites or resources, and we do not endorse and are not responsible or liable for such linked websites or resources. You further acknowledge and agree that we shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with your use of or reliance on any linked websites or resources. You also acknowledge and agree that these third party websites may have their own Terms of Service and Privacy Policy to which you may be bound.

5. Acceptable Use of Liminex's Websites

You agree that you will not:

Post content or otherwise engage in activity that: harasses, abuses, or threatens any other person, or that contains obscene content; degrades others on the basis of gender, race, class, ethnicity, national origin, religion, sexual preference, disability, or other classification; or is unlawful, harmful, tortious, defamatory, libelous, or invasive of another's privacy.

Copy, download (other than through page caching necessary for personal use, or as otherwise expressly permitted by these Website Terms), modify, distribute, transmit, display, perform, reproduce, broadcast, duplicate, publish, license, create derivative works from, or offer for sale any content or other information contained on or obtained from or through the Website, by any means except as provided for in these Website Terms or with our prior written consent.

Scrape, access, monitor, index, frame, link, or copy any content or information on the Website by accessing the Website in an automated way, using any robot, spider, scraper, web crawler, or any method of access other than manually accessing the publicly-available portions of the Website through a browser or any approved API.

Violate the restrictions in any robot exclusion headers of our Website, if any, or bypass or circumvent other measures employed to prevent or limit access to the Website.

Post or otherwise make available any material that contains any software, device, instructions, computer code, files, programs, and/or other content or feature that is designed to interrupt, destroy, or limit the functionality of any computer software, hardware, or telecommunications equipment.

Post or do anything that could disable, overburden, or impair the proper working of our Website; or interfere with our Website's appearance, security, or functionality.

Post, utilize, or otherwise make available any other party's intellectual property unless you have the right to do so, whether through an assignment of rights, use waiver, license, or fair use exception.

Falsely state or otherwise misrepresent your affiliation with a person or entity, or impersonate any person or entity in a manner that does not constitute parody.

Solicit personal or sensitive information from other users such as address, credit card information, financial account information, or passwords.

Post spam or other advertisements or solicitations, promote commercial entities, or otherwise engage in commercial activity on or through our Website.

Violate the law or encourage conduct that would constitute a criminal offense or give rise to civil liability.

Violate these Website Terms or any guidelines or policies posted by us.

Interfere with any other user's or party's use and enjoyment of the Website.

If you violate any of these rules or use the Website in any way that is not authorized, we may, in our sole discretion, remove any User Content, block access to the Website, and/or cancel your or any other user's account. You agree to immediately notify us at terms@goguardian.com upon learning of any unauthorized use, misuse, or abuse of the Website.

6. Liability, Warranty Disclaimers, and Other Legal Information

6.1 Warranty Disclaimer

YOU EXPRESSLY UNDERSTAND AND AGREE THAT:

YOUR USE OF THE WEBSITE IS AT YOUR SOLE RISK. THE WEBSITE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. WE EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, QUIET ENJOYMENT, ACCURACY, OR NON-INFRINGEMENT. WE MAKE NO WARRANTY THAT THE WEBSITE WILL MEET YOUR REQUIREMENTS, WILL BE AVAILABLE ON AN UNINTERRUPTED, TIMELY, SECURE, OR ERROR-FREE BASIS, OR WILL BE ACCURATE, RELIABLE, FREE OF VIRUSES OR OTHER HARMFUL CODE, COMPLETE, LEGAL, OR SAFE.

ANY CONTENT DOWNLOADED OR OTHERWISE OBTAINED THROUGH THE WEBSITE IS DOWNLOADED AND USED AT YOUR SOLE DISCRETION AND RISK AND YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM, MOBILE DEVICE, SOFTWARE, TECHNOLOGY, OR LOSS OF DATA THAT RESULTS FROM THE DOWNLOAD OR USE OF ANY SUCH CONTENT.

NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM US OR THROUGH OR FROM THE WEBSITE SHALL CREATE ANY WARRANTY.

SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF IMPLIED WARRANTIES, SO THE ABOVE EXCLUSION MAY NOT APPLY TO YOU.

6.2 Indemnity

YOU AGREE TO INDEMNIFY, DEFEND, AND HOLD LIMINEX AND ITS PARENTS, SUBSIDIARIES, AFFILIATES, OFFICERS, EMPLOYEES, AGENTS, JOINT-VENTURERS, CO-BRANDERS, AND OTHER PARTNERS (AND ALL SUCCESSORS AND ASSIGNS OF ANY OF THE FOREGOING) (THE "LIMINEX PARTIES"), HARMLESS FROM AND AGAINST ANY CLAIM OR DEMAND, INCLUDING WITHOUT LIMITATION, REASONABLE ATTORNEYS' FEES AND DISBURSEMENTS, MADE BY ANY THIRD PARTY IN CONNECTION WITH OR ARISING OUT OF YOUR USE OF THE WEBSITE, YOUR CONNECTION TO THE WEBSITE, YOUR VIOLATION OF THE WEBSITE TERMS OR PRIVACY POLICY, YOUR SUBMISSION, POSTING, OR TRANSMISSION OF USER CONTENT TO THE WEBSITE, AND/OR YOUR VIOLATION OF ANY RIGHTS OF ANOTHER. THE LIMINEX PARTIES RESERVE THE RIGHT, AT OUR OWN EXPENSE, TO ASSUME THE EXCLUSIVE DEFENSE AND CONTROL OF SUCH DISPUTES, AND IN ANY EVENT YOU WILL COOPERATE WITH US IN ASSERTING ANY AVAILABLE DEFENSES.

6.3 Limitation of Liability

YOU UNDERSTAND AND AGREE THAT IN NO EVENT SHALL THE LIMINEX PARTIES BE LIABLE TO YOU OR ANY THIRD PARTY FOR ANY DIRECT, INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR EXEMPLARY DAMAGES, INCLUDING WITHOUT LIMITATION DAMAGES FOR LOSS OF PROFITS, GOODWILL, USE, DATA OR OTHER INTANGIBLE LOSSES (EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES), RESULTING FROM: (i) THE USE OF, OR THE INABILITY TO USE, THE WEBSITE; (ii) UNAUTHORIZED ACCESS TO OR ALTERATION OF YOUR TRANSMISSIONS AND/OR DATA; (iii) STATEMENTS OR CONDUCT OF ANY THIRD PARTY ON THE WEBSITE; OR (iv) ANY OTHER MATTER RELATING TO THE WEBSITE, EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

TO THE MAXIMUM EXTENT PERMITTED BY LAW, NOTWITHSTANDING ANYTHING TO THE CONTRARY CONTAINED HEREIN, OUR LIABILITY TO YOU FOR ANY DAMAGES ARISING FROM OR RELATING TO THE WEBSITE TERMS (FOR ANY CAUSE WHATSOEVER AND REGARDLESS OF THE FORM OF THE ACTION), WILL AT ALL TIMES BE LIMITED TO THE AMOUNT PAID BY YOU, IF ANY, OR YOUR ORGANIZATION FOR THE WEBSITE GIVING RISE TO SUCH CLAIM IN THE CALENDAR YEAR IN WHICH SUCH CLAIM AROSE. SOME JURISDICTIONS DO NOT ALLOW THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATION OR EXCLUSION MAY NOT APPLY TO YOU.

7. Account Termination

You agree that we may, in our sole discretion, terminate your account without notice or liability to you or any third party. Grounds for such termination shall include (without limitation), (a) breaches or violations of the Website Terms or other agreements and/or guidelines, (b) discontinuance or material modification of the Website, (c) unexpected technical or security issues or problems, (d) to protect the rights, property, or safety of Liminex, its agents and affiliates, its users and the public, and/or (e) for any reason or no reason whatsoever. Termination of your account may include removal of access to all offerings requiring registration and, in our sole discretion, the deletion of your account and/or User Content.

8. Legal Compliance

You acknowledge, consent, and agree that we may access, preserve, and disclose your account information, and communications made by you to us, and/or any User Content that you submit or make available for inclusion on the Website, if required to do so by law or in a good faith belief that such access, preservation, or disclosure is permitted by our Website Privacy Policy or as reasonably necessary or appropriate for any of the following reasons: (1) to comply with legal process; (2) to enforce the Website Terms; (3) to respond to claims that any content violates the rights of third parties; (4) to protect the rights, property, or personal safety of Liminex, its agents and affiliates, its users, and the public; (5) to comply with applicable law; and/or (6) to address your requests.

9. Governing Law

These Website Terms and the relationship between you and Liminex shall be governed by the laws of the State of California without regard to conflict of law provisions. You consent to exclusive personal jurisdiction and venue in federal and state courts located in and serving Los Angeles County, California.

10. Miscellaneous

10.1 Entire Agreement

These Website Terms constitute the entire agreement between you and us with respect to the Website and supersedes any prior agreements, oral or written, between you and us. The section titles in the Website Terms are for convenience only and have no legal or contractual effect.

10.2 Waiver and Severability of Terms

The failure of us to exercise or enforce any right or provision of the Website Terms shall not constitute a waiver of such right or provision. If any provision of the Website Terms is found by a court of competent jurisdiction to be invalid, the parties nevertheless agree that the court should endeavor to give effect to the parties' intentions as reflected in the provision, and the other provisions of the Website Terms remain in full force and effect.

10.3 Third-Party Beneficiaries

You agree that, except for the Liminex family and as otherwise expressly provided in this Website Terms, there shall be no third-party beneficiaries to this Website Terms.

11. Changes to These Website Terms

We reserve the right to make changes to this Website Terms, such as to reflect changes in the law or to our Website. These Terms, including any changes to these terms, will be posted on our Website. You are responsible for regularly reviewing our Website and these Website Terms to obtain notice of such modifications. Your continued use of our Website following an update to the Website Terms will constitute your acceptance of the updated Website Terms.

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